भारतीय गैर न्यायिक

भारत INDIA

रु. 500

FIVE HUNDRED RUPEES

पाँच सौ रुपये

Rs. 500

सत्यमेव जयते

INDIA NON JUDICIAL

महाराष्ट्र MAHARASHTRA ◐ 2023 ◐ CM 567974

प्रधान मुद्रांक कार्यालय, मुंबई
प.मु.वि.क्र. ८००००२०
- 7 MAY 2024
सक्षम अधिकारी

श्रीम. सुषमा चव्हाण

This stamp paper forms an integral part of the Amended and Restated Investment Agreement entered by & amongst Glass Wall Systems (India) Private Limited, India Business Excellence Fund II, India Business Excellence Fund IIA, Mr. Jawahar Hemrajani and Promoter Group Shareholders dated 11th July, 2024

DATE: 11th July, 2024

AMENDED AND RESTATED INVESTMENT AGREEMENT

BY AND AMONGST

GLASSWALL SYSTEMS (INDIA) PRIVATE LIMITED

(as Company)

AND

INDIA BUSINESS EXCELLENCE FUND II

(as IBEF II)

AND

INDIA BUSINESS EXCELLENCE FUND - IIA

(as IBEF IIA)

AND

MR. JAWAHAR HEMRAJANI

(as Jawahar)

AND

Persons listed in SCHEDULE 1

(as Promoter Group Shareholders)

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AMENDED AND RESTATED INVESTMENT AGREEMENT

M This **AMENDED AND RESTATED INVESTMENT AGREEMENT ("Agreement")** executed at Mumbai on this 11th July, 2024 ("**Execution Date**"):

BY AND AMONGST:

(1) GLASS WALL SYSTEMS (INDIA) PVT. LTD., a private limited company incorporated in India under the provisions of the Companies Act, 1956, and having its registered office at 503-504, 5th Floor, A Wing, Marathon Futurex, Mafatlal Mills Compound, N.M. Joshi Marg, Lower Parel (East), Delisle Road, Mumbai – 400013 (hereinafter referred to as "Company", which expression shall, unless it be repugnant to the context or meaning thereof, be deemed to mean and include its successors and permitted assigns);

AND

(2) INDIA BUSINESS EXCELLENCE FUND II, a unit scheme of Business Excellence Trust II , a trust created under the Indian Trust Act, 1882, whose trustee is Vistra ITCL (India) Limited, a public company incorporated under the provisions of the Companies Act, 1956 and having its registered office at the IL&FS Financial Centre, C-22, G Block, Bandra Kurla Complex, Bandra (East), Mumbai 400051, India , and for the purposes of this Agreement, acting through its investment manager, MO Alternate Investment Advisors Private Limited, a company registered in India under the Companies Act, 1956 having its registered office at Motilal Oswal Tower, Junction of Gokhale Road & Sayani Road, Prabhadevi, Mumbai – 400025 (hereinafter referred to as "**IBEF II**", which expression shall, unless it be repugnant to the context or meaning thereof, be deemed to mean and include its successors and assigns);

AND

(3) INDIA BUSINESS EXCELLENCE FUND -IIA, a public limited company incorporated under the laws of Mauritius and having its office at Apex House, Bank Street, Twenty Eight, Cybercity, Ebene, Mauritius 72201 (hereinafter referred to as "**IBEF IIA**", which expression shall, unless it be repugnant to the context or meaning thereof, be deemed to mean and include its successors and assigns);

AND

(4) MR. JAWAHAR HEMRAJANI, an Indian citizen, aged 60 years, holding PAN AAAPH4147F and currently residing at B-2701, Plot No 5, Tharwani Heights, Sector 18, Palm Beach Road, Sanpada Navi Mumbai 400705 (hereinafter referred to as "**Jawahar**", which expression shall, unless it be repugnant to the context or meaning thereof, be deemed to mean and include his heirs, executors, administrators and permitted assigns);

AND

(5) THE PERSONS LISTED IN SCHEDULE 1, represented by their constituted attorney, Jawahar (hereinafter collectively referred to as the "**Promoter Group Shareholders**", which expression shall, unless it be repugnant to the context or meaning thereof, be deemed to mean and include their respective heirs, executors, administrators and permitted assigns).

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Hereinafter, (a) Jawahar shall be referred to as the "**Promoter**"; (b) IBEF II and IBEF IIA shall be collectively referred to as "**Investors**" and individually as "**Investor**"; and (c) the Investor, the Company, the Promoter and the Promoter Group Shareholders shall be collectively referred to as "**Parties**" and individually as the "**Party**".

WHEREAS:

A. The Company is a private limited company engaged in the Business (as defined hereinafter).

B. The Parties and Mr. Kamlesh Choudhari and Mrs. Sunita Choudhari had entered into an investment agreement dated 9 June 2014, as amended on 10 March 2017 ("**Erstwhile IA**"), Closing (as defined in Erstwhile IA) under which Erstwhile IA took place on 10 June 2014.

C. Subsequently, Mrs. Sunita Choudhari has transferred 1,84,676 (One Lakh Eighty Four Thousand Six Hundred Seventy Six) Equity Shares of the Company to Mr. Amit Jawahar Hemrajani and Mr. Kamlesh Choudhari has transferred (i)15,55,058 (Fifteen Lakhs Fifty Five Thousand and Fifty Eight) Equity Shares of the Company to Jawahar; (ii) 9,71,912 (Nine Lakhs Seventy One Thousand Nine Hundred and Twelve) Equity Shares of the Company to Mr. Eshan Jawahar Hemrajani; and (iii) 7,87,236 (Seven Lakhs Eighty Seven Thousand Two Hundred Thirty Six) Equity Shares of the Company Mr. Amit Jawahar Hemrajani, vide share transfer dated January 16, 2023 ("**Inter-se Transfer of Shares**"). Further, the Company announced a buy-back of shares to its shareholders on May 25, 2024, pursuant to which Mr. Kamlesh Choudhari had tendered all Equity Shares held by him in the Company in such buy-back, and Jawahar, Mr. Eshan Hemrajani and Mr. Amit Hemrajani had tendered certain Equity Shares held by them in such buy-back. Pursuant to the completion of such buy-back on the Execution Date and ratification of the Inter-se Transfer of Shares by the Board, Mr. Kamlesh Choudhari and Mrs. Sunita Choudhari have ceased to be shareholders of the Company, and the Investors, the Promoter and the Promoter Group Shareholders continue to be shareholders of the Company.

D. As on the Execution Date, after completion of the abovementioned buy-back of shares, the authorized share capital of the Company is Rs. 26,00,00,000 (Rupees Twenty-Six Crores only) divided into 2,60,00,000 (Two Crore Sixty Lakhs) equity shares of par value of Rs. 10 (Rupees Ten only) each, and the paid-up share capital of the Company is Rs. 15,18,43,250 (Rupees Fifteen Crore Eighteen Lakh Forty Three Thousand Two Hundred Fifty only) divided into 1,51,84,325 (One Crore Fifty-one Lakh Eighty-Four Thousand Three Hundred Twenty-Five only) Equity Shares of par value of Rs. 10 (Rupees Ten only) each. The shareholding pattern of the Company as on the Execution Date after completion of the abovementioned buy-back is more fully set out in **Schedule 2**.

E. On the account of Mr. Kamlesh Choudhari and Mrs. Sunita Choudhari ceasing to be shareholders of the Company, and the current shareholding of the Parties in the Company after completion of the abovementioned buy-back, the Parties are desirous to enter into this Agreement to define their mutual rights and obligations and set out the terms and conditions governing their relationship as the shareholders of the Company, *inter se*, as well as with the Company, and the management of the Company, in partial supercession and restatement of the Erstwhile IA, in the manner set out hereinafter.

IN CONSIDERATION OF THE MUTUAL COVENANTS AND AGREEMENTS SET FORTH HEREIN AND FOR OTHER GOOD AND VALUABLE CONSIDERATION, THE RECEIPT AND SUFFICIENCY OF WHICH IS HEREBY ACKNOWLEDGED, THE PARTIES HERETO AGREE AS FOLLOWS:

1. DEFINITIONS AND INTERPRETATION

1.1 Definitions

In this Agreement, the following terms, to the extent not inconsistent with the context thereof, shall have the following meanings assigned to them herein below:

"**Act**" means the Companies Act, 1956 or the Companies Act, 2013 (as applicable) and any amendment thereto or any other re-enactment thereof.

"**Affiliate(s)**" means:

(i) with respect to any Person other than a natural Person, any other Person that is directly or indirectly, through one or more intermediate Persons, Controlling, Controlled by, or under common Control of such Person and any investment funds managed or advised by such specified Person; and

(ii) with respect to any natural Person, (i) any other Person that is a Close Relative of such Person, and (ii) any Person that is directly or indirectly, through one or more intermediate Persons, Controlled by such Person;

provided that with respect to the Investors the term '*Affiliate*' shall also include any pooled investment fund(s) and/or juristic entity managed by the same manager, managing member, limited partner/investors of pooled investment fund(s) of IBEF II and/or IBEF IIA, general partner or management company or by an entity Controlling, Controlled by, or under common Control with such manager, managing member, general partner or management company. It is hereby clarified that in relation to the Investors, except in the context of In Specie Distribution, an "Affiliate" shall not include any Competitor and/or any portfolio entity or limited partners of the Investors and/or their Affiliates.

"**Ancillary Entities**" means the entities set out in **Schedule 11** hereto.

"**Anti-Corruption Legislations**" means the Prevention of Corruption Act, 1988, the Prevention of Money Laundering Act, 2002 and any other anti-corruption Laws applicable, where the Company does business including any rules and regulations formed there under from time to time.

"**Articles**" means the articles of association of the Company, as amended from time to time.

"**Assets**" means assets or properties (whether immovable, movable, tangible, intangible, absolute, accrued or fixed), including cash, cash equivalents, receivables, real estate, plant and machinery, equipment, Intellectual Property rights, raw materials, inventory, furniture, and fixtures.

"**Authorisation**" means any consent, registration, filing, notarization, certificate, license, approval, permit, authority, no-objections or exemption from, by or with any Governmental Authority, whether given by express action or deemed given by failure to act within any specified time period and all lenders', corporate, creditors' and shareholders' approvals or consents, including any of the aforementioned which may be required with respect to the Business.

"**Big Four Accounting Firms**" means any of KPMG, PricewaterhouseCoopers, Deloitte & Touche Tohmatsu or Ernst & Young and/ or their affiliated or associate firms permitted to practice in India.

"**Board**" means the board of Directors of the Company.

"**Business**" means providing complete solutions, whether by way of, *individually and/or collectively*, design, engineering, manufacture, trading, supply, erection and commissioning in architectural facade and glass wall curtain systems including but not limited to building envelopes, aluminium doors and windows, all types of railings, glass partitions whether indoors or outdoors, fabrication of aluminium profiles, powder coating, painting, all types of glass glazing, aluminium composite panel, stone cladding or cladding by way of using any material, designing, fabrication, installation of any type of glass or metal structures like bridges, pathways, canopies, skylights.

"**Business Day**" means a day on which scheduled commercial banks are open for normal banking business in Mumbai, India and Port Louis, Mauritius.

"**Business Plan**" means the annual detailed business and financing plan of the Company prepared by the Company and the Promoter and approved by the Investors in accordance with this Agreement, which includes the annual budget, comprising a projected profit and loss account, a projected balance sheet and projected cash flow statements, projected revenues, projected costs, projected operating and projected capital expenditures, and projected financing requirements, amount and timing of debt financing, if any, the current and future business strategy, project details including but not limited to project cost and project financial statements, for the on-going Financial Year, and as may be amended from time to time in accordance with the terms of this Agreement.

"**CFO**" means the chief financial officer of the Company or any Person of whatsoever designation performing the functions of a chief financial officer, who is primarily responsible for the upkeep and management of accounts, management information system and cash flows of the Company and who is appointed in accordance with this Agreement;

"**Class B Equity Shares**" mean the Class B fully paid-up equity shares of the Company, each having a face value of Rs. 10 (Rupees Ten Only), and having such terms as set out in **Schedule 5** (*Terms of Class B Equity Shares*).

"**Close Relatives**" means parents, spouse, son, daughter and their respective spouses.

"**Competitor**" means any Person engaged in the Business, any supplier of the Company and any real estate developer.

"**Confidential Material**" shall have the meaning ascribed to the term under Clause 17.1 of this Agreement.

"**Contingent Liability(ies)**" means (a) a possible obligation from past events that will be confirmed only by the occurrence or non-occurrence of one or more uncertain future events not wholly within the control of the Person; or (b) a present obligation from past events but which is not recognized because (i) it is not probable that an outflow of resources will be required to settle the obligation; or (ii) the obligation cannot be measured reliably.

"**Control**", with respect to a Person, includes the right to appoint majority of the directors or to control the management or policy decisions of such Person exercisable by a Person or Persons acting individually or in concert, directly or indirectly, including by virtue of their shareholding or management rights or shareholders agreements or voting agreements or in any other manner and includes, without prejudice to the generality of the foregoing, the ownership, directly or indirectly, of more than 26% of the voting rights of such Person.

"**Deed of Adherence**" means the deed of adherence in the form set out in **Schedule 4**.

"**Default Notice**" shall have the meaning ascribed to the term under Clause 13.2(b) of this Agreement.

"**Director**" means a director of the Company and any alternate of such director appointed in accordance with the Act, this Agreement and the Articles.

"**Dividend Policy**" shall mean the dividend policy as provided in **Schedule 7** hereto.

"**Execution Date**" shall have the meaning ascribed to it in the preamble to this Agreement;

"**Encumbrance**" means any encumbrance including, without limitation, any security interest, claim, mortgage, pledge, charge, hypothecation, deed of trust, lien, deposit by way of security, bill of sale, assignment, option or right of pre-emption, attachment of Assets, beneficial ownership (including usufruct and similar entitlements), any provisional or executional attachment, or any other type of preferential arrangement, privilege or priority of any kind having the effect of security or other such obligations, any designation of loss payees or beneficiaries or any similar arrangement under any insurance policy, any conditional sale or other title retention agreement or any lease in the nature thereof and any other interest held by a third party or a contract to give or refrain from giving any of the foregoing, any encumbrance, including any restriction imposed under any contract (other than this Agreement) on the transferability of the Securities.

"**Equity Shares**" mean the fully paid-up equity shares of the Company, each having a face value of Rs. 10 (Rupees Ten Only).

"**ESOP Plan**" shall have the meaning ascribed to the term under Clause 9.5(a) of this Agreement.

"**Event of Default**" shall have the meaning ascribed to the term under Clause 13.1 of this Agreement.

"**Financial Year**" means the period commencing on 1st of April of a year and ending on the 31st day of March of the following year.

"**FMV**" means fair market value which shall be determined by one of the Big Four Accounting Firm, mutually agreed upon between the Investors and Promoter. The FMV shall be calculated on a going concern basis and shall take into account the discounted cash flow valuation, valuation multiple in comparable transactions, strategic transactions and trading multiples of listed peers and shall be calculated in accordance with the principles of Indian GAAP. Where the FMV is being determined pursuant to any notice by the Investors provided under the terms of this Agreement, or is consequent to any breach by the Promoter and/ or Company, whether such FMV shall be determined as on the date of the notice or date of the said breach shall be decided at the option of the Investors.

"**Force Majeure**" or "**Force Majeure Event**" means the occurrence of an act of God, epidemic, lightning, earthquake, landslide, cyclone, flood, volcanic eruption, chemical or radioactive contamination or ionising radiation, fire or explosion, an act of war (whether declared or undeclared), invasion, armed conflict or act of foreign enemy, blockade, embargo, riot, insurrection, terrorist or military action, civil commotion or politically motivated sabotage, industry-wide or state-wide strikes or industrial action or any other event which is beyond reasonable control of any Party.

"**Fully Diluted Basis**" means the basis for computation of share capital or share ownership whereby all outstanding securities that are convertible, exercisable, exchangeable and reclassified into Equity Shares, are assumed to have been so converted, exercised, exchanged or reclassified.

"**GAAP**" means generally accepted accounting principles in India, notified by the appropriate Governmental Authority under the Act.

"**Governmental Authority**" means any government (foreign domestic, territorial, state, municipal or local), or any governmental, non-governmental, legislative, executive, administrative, fiscal, judicial, quasi-judicial or regulatory authority, government-owned or government-controlled (in whole or in part) enterprise, body, board, bureau, ministry, department, commission, court, tribunal, agency, instrumentality or other Person exercising legislative, executive, administrative, fiscal, judicial or regulatory functions (including planning authorities, mediators or arbitrators of competent jurisdiction), having jurisdiction over the matter in question, and includes any such authority having jurisdiction over or responsibility with respect to, the administration, assessment, determination, collection or imposition of any Tax, the Securities and Exchange Board of India and the RBI.

"IBEF II Investment Amount" means aggregate of the IBEF II Subscription Amount and the IBEF II Purchase Amount, or any further amount invested by IBEF II from time to time.

"**IBEF II Purchase Amount**" means a sum of Rs. 12,99,99,864.19 (Rupees Twelve Crore Ninety Nine Lakh Ninety Nine Thousand Eight Hundred Sixty Four Point One Nine Only).

"**IBEF II Subscription Amount**" means a sum of Rs. 8,00,00,000 (Rupees Eight Crore Only).

"IBEF IIA Investment Amount" means aggregate of the IBEF IIA Subscription Amount and the IBEF IIA Purchase Amount, or any further amount invested by IBEF IIA from time to time.

"**IBEF IIA Purchase Amount**" means a sum of Rs. 7,00,00,135.81 (Rupees Seven Crore One Hundred Thirty Five Point Eight One Only).

"**IBEF IIA Subscription Amount**" means a sum of Rs. 47,00,00,000 (Rupees Forty Seven Crore Only).

"**Indebtedness**" of any Person, means all obligations of such Person: (a) for borrowed money, (b) evidenced by notes, bonds, debentures or such similar instruments, (c) for the deferred purchase price of goods or services (other than trade payables or accruals incurred in the Ordinary Course of Business), (d) under capital leases; and (e) in the nature of guarantees of the obligations described in items (a) through (d) above of any other Person.

"**Insolvency Event**" means any of the following events, in respect of any Party:

(a) any corporate action, legal proceedings or other procedure or step is taken or notice is given and received in relation to:

(i) winding-up, dissolution or administration (by way of voluntary arrangement, scheme of arrangement or otherwise) of the relevant Party; or

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(ii) a composition, assignment or arrangement with any creditors of the relevant Party due to any debt restructuring exercise; or

(iii) admission of a corporate insolvency resolution process by National Company Law Tribunal or the appointment of a resolution professional, interim resolution professional, provisional liquidator, liquidator, receiver, or other similar officer in respect of the relevant Party or in respect of its substantial assets, which admission or appointment is not set aside by an order of a court/tribunal within a period of 120 (one hundred and twenty) days of such admission or appointment; or

(iv) enforcement of any security over any assets of the relevant Party, which has not been stayed or withdrawn within a period of 120 (one hundred and twenty days of such appointment.

"**Integrity Requirements**" means the integrity-related obligations (including but not limited to, obligations) related to AML/CFT, "know-your-customer" and fraud, corruption and Sanctionable Practices of the Company under (a) applicable Law and relevant codes of conduct and similar requirements, rules and codes conduct issued by industry self- regulatory organizations and similar trade associations, (b) Clause 4.1 and (c) **Schedule 8.**

"**Intellectual Property**" means all of the following anywhere in the world and all legal rights, title or interest in, under or in respect of the following arising under Law, whether or not filed, perfected, registered or recorded and whether now or later existing, filed, issued or acquired, including all renewals: (a) all national, regional and international patents, patent applications, patent disclosures, and all related re-issues, re-examinations, divisions, revisions, restorations, renewals, extensions, provisionals, continuations and continuations in part; (b) all copyrights, copyright registrations and copyright applications, copyrightable works and all other corresponding rights; (c) all mask works, mask work registrations and mask work applications; (d) all trademarks; (e) all inventions (whether patentable, patented or un-patentable and whether or not reduced to practice, any said patents, including any extensions, reissues, re-examinations, renewals, divisions, continuations, continuations-in- part, or design patents); (f) know-how, including technical know-how, process know-how, technology, technical data, trade secrets, confidential business information, manufacturing and production processes and techniques, clinical data and protocols, research and development information (including all research and development data, experimental and project plans), advertising and promotional materials, customer, distributor, third party manufacturer and supplier lists and information, correspondence, records, and other documentation, and other proprietary documentation and information of every kind; (g) all databases, data collections and data exclusivity; and (h) all other proprietary rights; including the right to sue for past, present or future infringement, misappropriation or dilution of any of the foregoing.

"**Investor Director(s)**" shall have the meaning ascribed to the term under Clause 3.1(a)(i) of this Agreement.

"**IRR**" means the discount rate expressed as an annual percentage rate, which when applied to any cash flows, results in a net present value of zero on those cash flows taking into account the date and amounts of such cash flows. While calculating the IRR, the coupon received by the Investors and any dividend declared by the Company would also be taken into consideration to adjust the calculation of IRR.

"**Investor Per Share Price**" means the total amount paid by an Investor for purchase of/subscription to the Investor Securities divided by the number of Equity Shares held by the Investor (on a Fully Diluted Basis) at the time of computation.

"**Investor Securities**" means collectively (i) 17,00,845(Seventeen Lakhs Eight Hundred Forty Five) Equity Shares of face value of Rs.10 (Rupees Ten only) held by IBEF II; and (ii) 43,73,604 (Forty Three Lakhs Seventy Three Thousand Six Hundred Four) Equity Shares of face value of Rs.10 (Rupees Ten only) each held by IBEF IIA and shall also include any Equity Shares acquired by the Investors in accordance with Clause 8.3(b) and Clause 19.1.

"**Investor Tag-Along Right**" shall have the meaning ascribed to the term under Clause 8.4(a) of this Agreement.

"**In-Specie Distribution**" means any transfer of any Securities from the Investors to their respective limited partners pursuant to any in specie distribution of assets of the Investors;

"**IPO**" means closing of an underwritten initial public offering of the Equity Shares by the Company (whether by a fresh issue, or a sale of the existing Equity Shares or a combination of both), pursuant to which the Equity Shares are listed on a Stock Exchange, in which at least the minimum number of shares mandatory under the listing requirements are sold / issued to the public, in compliance with all applicable Laws and pursuant to Clause 12.3 of this Agreement.

"**Key Management Person**" means the chief executive officer, the CFO and chief operating officer of the Company (by whatever name called) appointed from time to time and any other officer of the Company as may be designated as a '*Key Management Person*' by the Board from time to time.

"**Law**" means and includes any statute, law, bye-law, enactment, regulation, ordinance, policy, treaty, rule, notification, direction, directive, guideline, requirement, license, rule of common law, order, decree, judgment, or any restriction or condition including any similar form of decision of, or determination, application or execution by, or interpretation or pronouncement having the force of law of, any Governmental Authority having jurisdiction over the matter in question.

"**Liabilities**" means all Indebtedness, obligations, Contingent Liabilities and other liabilities of a Person including any obligation to pay Tax (whether absolute, accrued, fixed, or otherwise, or whether due or to become due).

"**Loss**" means actual and direct (i) losses, Liabilities, damages, diminution in value, fines, interest, penalties and (ii) Taxes or any other costs and penalty (whether the foregoing arise out of third-party claims or not and whether or not pursuant to any pronouncements, orders and/or decrees by any Governmental Authority) including, reasonable attorneys' fees and expenses and all amounts paid in investigation, defence or settlement of any of the foregoing but excluding all punitive or indirect damages.

"**Lock-In Period**" shall have the meaning ascribed to the term under Clause 8.3(a) of this Agreement.

"**Material Adverse Change**" means any event, occurrence, fact, condition, change, development or effect that, individually or in the aggregate, has caused or is likely to cause a material adverse change in:

(i) the Assets, Business, properties, Liabilities, financial condition, results, operations or prospects of the Company (i.e. having a financial impact of Rs. 5,00,00,000 (Rupees Five crores or more);

For the avoidance of doubt it is clarified that where the any event, occurrence, fact, condition, change, development or effect that, individually or in the aggregate, has caused or is likely to cause a material adverse change which cannot be quantified in terms of money then the said limit of Rs. 5,00,00,000 (Rupees Five Crores or more) will not apply.

(ii) the ability of the Company and/or the Promoter to: (i) perform their respective obligations; or (ii) consummate the transactions contemplated, under the Transaction Documents; and

(iii) validity and enforceability of the Transaction Documents or the rights or remedies of the Investors therein or the transactions contemplated therein.

"**Memorandum**" means the memorandum of association of the Company as amended from time to time.

"**Ordinary Course of Business**" means the ordinary course of business of the Company consistent with past custom and practice, to the extent consistent with applicable Law; *provided that* a series of related transactions which taken together is not in the Ordinary Course of Business shall in each case individually also be deemed not to be in the Ordinary Course of Business.

"**Person(s)**" means any person (including a natural person), trust, Hindu undivided family (HUF), firm, trade union, company, corporation, Governmental Authority, state or agency of a state or any association or partnership (whether or not having separate legal personality) of two or more of the foregoing.

"**Potential Investor**" shall have the meaning ascribed to the term under Clause 9.4(a) of this Agreement.

"**Promoter Director(s)**" shall have the meaning ascribed to the term under Clause 3.1(a)(ii) of this Agreement.

"**Promoter Group**" shall mean the Promoter and the Promoter Group Shareholders.

"**RBI**" means the Reserve Bank of India.

"**Registrar of Companies**" means the registrar of companies having jurisdiction in the area where the registered office of the Company is situated.

"**Related Party**" (i) with respect to any individual, means: (a) the Relatives of such individual, (b) entities Controlled by such individual and/or his Relatives, either individually or jointly, and (c) directors and Affiliates of the entities referred to in (b), and (ii) with respect to any company, shall have the meaning ascribed to the term in the Act.

"**Related Party Policy**" means the policy as approved by the Investors and adopted by the Board.

"**Relative**" shall have the meaning assigned to the term in the Act.

"**Reserved Matter Items**" shall have the meaning ascribed to the term under Clause 3.6(a) of this Agreement.

"**Restated Articles**" means the restated and amended Articles incorporating the provisions of this Agreement in Agreed Form.

"Sanctionable Practice" means any Corrupt Practice, Fraudulent Practice, Coercive Practice, Collusive Practice, or Obstructive Practice, as those terms are defined in and interpreted in accordance with the Anti-Corruption Guidelines as mentioned in **Schedule 8** hereof.

"**Securities**" means the Shares and shall include the Investor Securities.

"**Share Equivalents**" means preference shares, debentures, bonds, loans, warrants, options, depositary receipts, debt securities, loan stock, notes, or any other instruments, securities or certificates which are convertible into or exercisable or exchangeable for, or which carry a right to subscribe to or purchase, or which represent or bestow any beneficial ownership / interest in, the Equity Shares.

"**Share capital**" means all of the issued and paid-up Shares.

"**Shareholder**" means any Person who holds any Shares.

"**Shares**" means Equity Shares.

"**Specific Properties**" means the owned properties of the Company listed in **Schedule 10**.

"**Stock Exchange**" means the BSE Limited, the National Stock Exchange of India Limited (including, in each case, any successor thereto) and/or any other recognised stock exchange (domestic or international) as may be mutually acceptable to the Investors and the Promoter and the Company.

"**Taxes**" means (i) any direct or indirect taxes including excise duties, stamp duties, customs duties, service tax, value added tax, sales tax, local taxes, cess, and (ii) all forms of deductions, withholdings, duties, imposts, levies, fees or other charges or taxes of a similar nature charged/levied by any Governmental Authority (including any penalty or costs or charges or interest payable in connection with any failure to pay the same), whether levied, collected, withheld or assessed.

"**Third Party**" shall mean a Person who is not a Party.

"**Transaction Documents**" means a collective reference to this Agreement, the Restated Articles and all other deeds and documents executed by the Parties to give effect to the transactions contemplated under the Agreement, and include the provisions of the Erstwhile IA which continue to be effective as per the terms of this Agreement.

"**Transfer**" means to sell, gift, exchange, give, assign, transfer any interest in trust, alienate, Encumber, amalgamate, merge or suffer to exist (whether by operation of Law or otherwise) any Encumbrance on, or otherwise dispose of in any manner whatsoever, voluntarily or involuntarily, but shall not include transfers by way of testamentary or intestate successions, and the term "**Transferred**" shall have a meaning correlative to the foregoing. The term "**Transfer**", when used as a noun, shall have a correlative meaning.

1.2 **Interpretation**

(i) All references in this Agreement to statutory provisions shall be construed as meaning and including references to:

(A) any statutory modification, consolidation or re-enactment (after the date of this

Agreement) for the time being in force;

(B) all delegated legislation made pursuant to a statutory provision; and

(C) any statutory provisions of which these statutory provisions are a consolidation, re-enactment or modification.

(ii) References to "Clauses", "Schedules", "Annexures", "Recitals" and "Preamble" shall be to clauses or schedules or recitals or preamble or annexures of this Agreement.

(iii) The Schedules attached hereto are incorporated in and are intended to be a part of this Agreement, provided that in the event of a conflict between the terms of any Schedule and the terms of the body of this Agreement, the terms of the body of this Agreement shall take precedence.

(iv) All titles, subject headings, table of contents and similar items are provided for the purpose of reference and convenience and are not intended to affect the meaning of the content or scope of this Agreement.

(v) The terms "hereof", "hereto" and derivative or similar words refer to this entire Agreement or specified Clauses of this Agreement, as the context may require.

(vi) References to the singular number shall include references to the plural number and vice versa.

(vii) Words denoting one gender shall include all genders.

(viii) Any reference to any agreement or document shall include references to any such agreement or document as it may, after the Execution Date, from time to time, be amended, varied, supplemented or novated in writing in accordance with the requirements of such agreement or document.

(ix) A reference to conduct includes, without limitation, an omission, statement or undertaking whether or not in writing.

(x) Reference to the word "include" shall be construed without limitation.

(xi) If any word or phrase is defined, its other grammatical forms or conjugations shall have a corresponding meaning.

(xii) A reference to writing includes any means of reproducing words in a tangible and permanently visible form.

(xiii) Reference to a "month" or a "year" shall be to a calendar month or calendar year, respectively.

(xiv) Reference to "consent" or "approval" shall mean prior written consent/approval.

(xv) any reference to a document in "**Agreed Form**" is to a document in form and substance agreed among the Company, the Promoter and the Investor, and initialled for the purpose of identification by or on behalf of each of them.

(xvi) Any reference to mutual agreement shall mean any mutual agreement in writing by the concerned Parties.

(xvii) The expressions "body corporate", "holding company", "subsidiary" and "subsidiary company" shall have the respective meanings ascribed to them in the Act.

(xviii) Unless expressly provided otherwise, the provisions of this Agreement which relate to the Promoter are given and entered into by them jointly and severally. The Investors may release or compromise the liability of a Promoter without affecting the liability of the other Promoter. If any liability of a Promoter is, or becomes, illegal, invalid or unenforceable in any respect, this shall not affect or impair the liability of the other Promoter under this Agreement.

(xix) No provisions of this Agreement shall be interpreted in favour of, or against, any Party by reason of the extent to which such Party or its counsel participated in the drafting hereof or by reason of the extent to which any such provision is inconsistent with any prior draft hereof.

2. EFFECTIVENESS

2.1 The Parties agree that this Agreement shall come into effect on the Execution Date.

2.2 Without prejudice to the accrued rights and obligations of the Parties under the Erstwhile IA till the Execution Date, the Parties further agree that with effect from the Execution Date, Clauses 7 to 15, Clauses 17 to 23, Clauses 24.1 to 24.5, Clause 24.12, Clause 24.13, Clause 24.15 and Clause 24.17 (with corresponding definitions and schedules) of the Erstwhile IA shall cease to have any effect, and shall be superseded and extinguished by the provisions of this Agreement.

2.3 The Parties further agree that Clause 2, Clause 6 and Clause 16 (with corresponding definitions and schedules) of the Erstwhile IA shall continue to be effective as per the terms thereof, *provided that*, all references to "Promoters" in the aforementioned Clauses of the Erstwhile IA shall be construed to refer to only Jawahar and not to Mr. Kamlesh Choudhari.

2.4 The Parties acknowledge that Clauses 3 to 5 of the Erstwhile IA have already been performed by the respective parties to the Erstwhile IA as per their terms, and Closing under the IA occurred on 10 June 2014.

2.5 In case of any inconsistency between the provisions of the Erstwhile IA and the provisions of this Agreement, the provisions of this Agreement will prevail.

3. CORPORATE GOVERNANCE

3.1 Constitution of the Board

(a) Composition on the Execution Date. On and from the Execution Date, the Board shall comprise 5 (five) Directors, of whom:

(i) (A) Investors shall have a right to appoint and maintain in office 2 (two) Directors, so long the Investors hold, in aggregate, 10% (Ten percent) or more of the Share capital of the Company on a Fully Diluted Basis; or (B) Investors shall have a right to appoint and maintain in office 1 (one) Director so long the Investors hold, in aggregate, 2.5% (Two and half percent) or more but less than

10% (Ten Percent) of the Share capital of the Company on a Fully Diluted Basis. (Directors appointed as per Clause 3.1(a)(i)(A) or Clause 3.1(a)(i)(B) above shall be referred to as "**Investor Director(s)**"); and

(ii) Promoter shall have a right to appoint and maintain in office 3 (three) Directors ("**Promoter Director(s)**"). In this regard, the Promoter agrees that out of the total 3 (Three) Directors to be nominated for appointment by the Promoter, 1 (one) Director shall always be the Promoter himself (for so long as he is able to act as a Director and permitted under applicable law). Provided however that, if the Promoter is desirous of appointing a Close Relative in the capacity of an executive director, then the Promoter shall obtain Investors' prior written consent for appointment of such Close Relative as executive director of the Company. It is clarified that the Promoter shall have a right to appoint and maintain in office majority of the non-independent Directors.

Further, it is agreed between the Parties that to the extent the Investor Directors and Promoter Directors are not appointed, the position shall remain vacant.

(b) In case the size of the Board is increased to more than 5 (five) Directors, the Investors and the Promoter shall have the right to appoint and maintain such number of non-independent Directors that is proportionate to their respective aggregate shareholding in the Company on a Fully Diluted Basis, upon mutual agreement of the Investors and the Promoter.

(c) Independent Directors. In addition to their rights under Clause 3.1(a), the Investors and the Promoter shall have the right to recommend up to 2 (two) independent directors (mutually acceptable to the Investors and the Promoter) to be appointed on the Board.

(d) Appointment and removal. The right of nomination of a Director conferred on the Investors and the Promoter with respect to Investor Directors and Promoter Directors respectively, shall include the right at any time to require the Company, subject to the provisions of the Act, to remove and/or replace from office such individual nominated or appointed by the Investors / Promoter (as the case may be), and from time to time determine the period for which such individual shall hold office as Director. Independent directors shall be removed or replaced by the Company pursuant to mutual consent of the Investors and the Promoter.

(e) Additional directorship. To the extent permissible by applicable Law, the appointment of the Investor Directors shall be by direct nomination by the Investors and any appointment or removal of the Investor Director under this Clause 3.1 shall, unless the contrary intention appears, take effect from the date it is notified to the Company in writing. If applicable Law does not permit the Person nominated by the Investors, to be appointed as a Director merely by nomination by the Investors, then the Company and the Promoter Group shall ensure that the Board forthwith (and in any event within 10 (Ten) Business Days of such nomination or at the next Board meeting, whichever is earlier) appoints such Person as a Director and further that, unless the concerned Investor changes or withdraws such nomination, such Person is also elected as a Director at the next general meeting of the Shareholders.

(f) Committees. The Investor Director(s) may also, at the sole discretion of the Investors, be nominated to all committees of the Board. The Directors appointed to the committees shall be in the same proportion as the Directors appointed to the Board. Unless otherwise provided in this Agreement or otherwise agreed in writing between the

Investors, Promoter and Company, at least 1 (one) Director nominated for appointment by each of the (a) Investors; and (b) the Promoter, shall be a member of any committee formed by the Board. The provisions relating to agenda, notice, quorum and voting applicable to the Board shall apply, to the extent permissible, to any committee formed by the Board.

(g) Exercise of voting rights. If the Investors desire by way of written communication to the Company that the Investor Director nominated by it should cease to be a Director, the Shareholders shall exercise their voting rights, in relation to the Securities held by them in the Company in such manner so as to ensure removal of such Director and the appointment of such other individual as a Director, as may be nominated by the Investors.

(h) Alternate Director. Subject to the Applicable Laws, the Investors shall be entitled to nominate alternate Director(s) for the Investor Director(s) it is entitled to nominate. Such appointment as alternate Director shall take place as the first item of business at the Board meeting next following receipt by the Company of such nomination.

(i) Observer. The Investors shall, in addition to its right to nominate Directors in accordance with Clause 3.1, also be entitled to appoint 1 (one) observer ("**Observer**") to the Board and all committees of the Board. The Observer shall be entitled to attend all the meetings of the Board and the committees of the Board of the Company but shall not have any right to vote or participate in any manner in any discussions or deliberations of the Board or its committees. The Investors shall be responsible for the actions of the Observer including compliance by the Observer of confidentiality obligations under the Transactions Documents as applicable to the Investors.

(j) Casual Vacancy. The Promoter and the Investors shall have the right to fill in any casual vacancy caused in the office of the Promoter Directors nominated by the Promoter or Investor Director(s) nominated by the Investors, as the case may be, by reason of his/her resignation, death, removal or otherwise. All nominations made by the Promoter or Investor, as the case may be, shall be in writing and shall take effect on the Board passing resolution(s) approving the appointment of the nominated Director.

(k) Reasonable Expenses. The Company shall reimburse the Investor Directors' reasonable expenses relating to their attendance at meetings of the Board or committees, including air fare, boarding and lodging expenses. The Investors shall reimburse the Observers reasonable expenses relating to his attendance of meetings limited to costs of local travel in Mumbai. Further it is agreed between the Parties that the meeting of the Board shall take place only in Mumbai

3.2 **Liability of the Investor Directors**

(a) The Company recognizes that the Investor Directors shall not have any day-to-day managerial powers and that they will not be whole time, managing or executive directors of the Company and will not, subject to applicable Law, be held responsible for any default or failure of the Company in complying with the provisions of any applicable Laws, including defaults under the Act, Taxation and labour Laws of India. The Company shall assert such position in any notice, reply, litigation or other proceedings in which any liability is sought to be attached to the Investors and/or the Investor Directors. The Investor Directors shall not be required to hold any qualification shares.

(b) Subject to applicable Law, the Promoter and the Company expressly agree and undertake that they shall not identify the Investor Directors as '*officers in default*' of the Company, or occupier of any premises used by the Company or employers or "*person-in-charge*" under applicable Laws. Further, the Promoter and the Company undertake to ensure that the Directors or suitable individuals other than Investor Directors are nominated as compliance officers, occupiers and/or employers and/or persons-in-charge, as the case may be, in order to ensure that, to the maximum extent permitted by applicable Law, the Investor Directors do not incur any liability for any default or failure of the Company in complying with the provisions of any applicable Laws.

(c) In the event that any notice or proceedings have been filed against any Investor Director, the Company, and the Promoter shall take all necessary steps to ensure that name of such Investor Director is excluded / deleted and the charges / proceedings against such Investor Director are withdrawn and shall also take all steps to defend such Investor Director against such proceedings and the Company shall pay all costs, damages, fines, levies etc. that may be levied against such Investor Director.

(d) Director Indemnification

(i) The Company shall indemnify, defend and hold harmless the Investor Directors to the fullest extent permitted by applicable Law against all Losses actually and reasonably incurred by him or her in connection with any action, suit or proceeding, where the Director was or is a party or is made a party to any pending or completed action, suit or proceeding, whether civil, criminal, administrative or investigative, by reason of the fact that such Investor Director is or was a Director of the Company, was serving at the request of the Company as an officer/ director/ partner/ trustee/ employee of another Person (as the case may be).

(ii) If so requested by the Investor Directors, the Company shall make payment towards any and all Losses incurred by the Investor Directors by paying such Losses on behalf of the Investor Directors. In the event the Company is restricted under law from paying such Losses on behalf of the Investor Directors, then the Company shall reimburse the Investor Directors for such Losses. It is agreed between the Parties that, in the event the Investor Directors make any payments under this Clause 3.2(d)(ii), then the Investor Directors will intimate the Company about such payments.

(iii) For purposes of this Agreement, the termination of any claim, action, suit or proceeding, by judgment, order, settlement (whether with or without court approval) or conviction, or upon a plea of *nolo contendere*, or its equivalent, shall not create a presumption that any Investor Director did not meet any particular standard of conduct or have any particular belief or that a court has determined that indemnification is not permitted by applicable Law. It is further agreed between the Parties that, if the Investor Director is convicted by any court/Governmental Authority for fraud in relation to the subject matter under indemnification, then the said Investor Director shall not be liable to be indemnified by the Company.

(iv) The rights of the Investor Directors hereunder shall be in addition to any other rights the Investor Directors may have under the Restated Articles or otherwise. To the extent that a change in applicable Law permits greater indemnification by agreement than would be afforded currently under the Restated Articles, it is the intent of the Parties hereto that the Investor Directors shall enjoy by this Agreement the greater benefits so afforded by such change.

(v) The Investor Directors are expressly meant to be beneficiaries of this Clause 3.2.

(e) The Company shall maintain, at its own cost, directors and officers liability insurance for all Directors for a sum insured amounting to of Rs. 10,00,00,000 (Rupees Ten crores only) on such terms as are satisfactory to the Investor

3.3 **Liability of the Promoter Directors**

(a) In the event that any notice or proceedings have been filed against any Promoter Director, the Company shall take all necessary steps to ensure that name of such Promoter Director is excluded / deleted and the charges / proceedings against such Promoter Director are withdrawn and shall also take all steps to defend such Promoter Director against such proceedings and the Company shall pay all costs, damages, fines, levies etc. that may be levied against such Promoter Director.

(b) Director Indemnification

(i) The Company shall indemnify, defend and hold harmless the Promoter Directors to the fullest extent permitted by applicable Law against all Losses actually and reasonably incurred by him or her in connection with any action, suit or proceeding, where the Director was or is a party or is threatened to be made a party to any threatened, pending or completed action, suit or proceeding, whether civil, criminal, administrative or investigative, by reason of the fact that such Promoter Director is or was a Director of the Company, was serving at the request of the Company as an officer/ director/ partner/ trustee/ employee of another Person (as the case may be).

(ii) If so requested by the Promoter Directors, the Company shall make payment towards any and all Losses incurred by the Promoter Directors by paying such Losses on behalf of the Promoter Directors. In the event the Company is restricted under law from paying such Losses on behalf of the Promoter Directors, then the Company shall reimburse the Promoter Directors for such Losses. It is agreed between the Parties that, in the event the Promoter Directors make any payments under this Clause 3.3(b)(ii), then the Investor Directors will intimate the Company about such payments.

(iii) For purposes of this Agreement, the termination of any claim, action, suit or proceeding, by judgment, order, settlement (whether with or without court approval) or conviction, or upon a plea of nolo contendere, or its equivalent, shall not create a presumption that any Promoter Director did not meet any particular standard of conduct or have any particular belief or that a court has determined that indemnification is not permitted by applicable Law. It is further agreed between the Parties that, if the Promoter Director is convicted by any court/Governmental Authority for fraud in relation to the subject matter under indemnification, then the said Promoter Director shall not be liable to be indemnified by the Company.

(iv) The rights of the Promoter Directors hereunder shall be in addition to any other rights the Promoter Directors may have under the Restated Articles or otherwise. To the extent that a change in applicable Law permits greater indemnification by agreement than would be afforded currently under the Restated Articles, it is the intent of the Parties hereto that the Promoter Directors shall enjoy by this Agreement the greater benefits so afforded by such change.

(v) The Promoter Directors are expressly meant to be beneficiaries of this Clause 3.3.

3.4 **Board Meetings**

(a) Subject to Applicable Law, the business and affairs of the Company shall be managed by and under the direction of the Board. Provided however that, in respect of Reserved Matter Items, the Board shall act in the manner specified in Clause 3.6.

(b) Frequency. The Board shall meet at least such number of times and at such frequency as prescribed under the Act.

(c) Notice:

(i) A meeting of the Board may be called by any 1 (one) other Director by giving notice in writing to the company secretary of the Company, specifying the date, time and agenda for such meeting. The company secretary of the Company shall, upon receipt of such notice, issue a notice to all Directors, convening a meeting of the Board, which notice shall be accompanied by a written agenda specifying the business of such meeting and copies of all papers relevant for such meeting. Reserved Matter Items shall form a part of the agenda of a Board meeting only after prior written consent of the Investors is obtained. The Promoter Group and the Company shall ensure that any matter proposed by the Investors/Investor Director shall be placed on the agenda of any Board meeting of the Company.

(ii) No meeting of the Board may be held unless at least 7 (seven) days' written prior notice of the meeting is issued to all the Directors; *provided that* a Board meeting at shorter notice may be convened, subject to the provisions of the Act, if the majority of the Directors including the Investor Directors accord their consent thereto.

(d) **Quorum:**

(i) The quorum at a Board meeting shall be 2 (two) Directors or one-third of its total strength, whichever is higher, of which 1 (one) shall be an Investor Director and 1 (one) shall be the Promoter Director, who shall be present at the commencement and throughout the Board meeting, unless this requirement is waived in writing by such Investor Director.

(ii) If adequate quorum is not present at any Board meeting due to the Investor Director or the Promoter Director not being present as mentioned in sub- clause (i) above, the meeting shall be adjourned by 7 (seven) days at the same place and same time as the original meeting. If adequate quorum is not present at such adjourned Board meeting, then notwithstanding anything to the contrary contained herein, the Directors then present shall constitute the quorum for the purposes of such adjourned meeting, except for the purposes of discussing or taking any action or decision relating to any Reserved Matter Item in accordance with Clause 3.6 (*Reserved Matters*) below. However, on the Reserved Matters, once the Investors have given consent to any such matter on the agenda prior to the Board Meeting, the affirmative vote of the Investors Directors or nominee shall not be required for such Reserved Matter at the relevant Board Meeting; provided that in the event the Investors have rejected or refused to give their affirmative vote relating to any Reserved Matter Item prior to the Board Meeting, such Reserved Matter Item shall not be placed on the agenda for the relevant Board Meeting. If such day on which the adjourned meeting is to be held is not a Business Day, then the meeting shall be held on the next day which is a Business Day. Provided however that if any Promoter Director is not present in the adjourned meeting, the said meeting shall adjourned once again by 7 (seven) days at the same place and same time as the adjourned meeting. If the Promoter Director is not present in the second adjourned meeting, such resolution shall be moved through circular resolution mechanism as provided in Clause 3.4(h) below to the extent permissible by Law. However, if it is not possible to pass such resolution by circular resolution instead of a circular resolution, the said meeting shall adjourned once again by 7 (seven) days at the same place and same time as the adjourned meeting and the resolutions may be passed at such further adjourned meeting and the non-presence of the Promoter Director shall not impact the quorum at such third adjourned meeting.

(e) Voting. Each Director shall be entitled to exercise 1 (one) vote at Board meetings. Subject to Clause 3.6 (Reserved Matters) and any additional requirements under the Act, the Memorandum and Articles, any decision shall be said to have been made and/or a resolution shall be said to have been passed at a meeting of the Board, only if at a validly constituted meeting such decisions are approved by and/or the resolution is passed by a majority of the Directors present and voting at such Board meeting. For the avoidance of doubt and notwithstanding anything to the contrary contained in this Clause, no action or decision relating to any Reserved Matter Item shall be taken at any meeting or adjourned meeting or through circulation without the Investor's consent as set out in Clause 3.6 (Reserved Matters).

(f) Chairman and Casting Vote. The chairman of the meeting shall always be a Promoter Director(s) then present at such meeting. The chairman of the meeting shall have a casting vote only in relation to matters, actions or decisions which do not fall within the ambit of any of the Reserved Matter Items.

(g) Participation by Audio Visual Methods. Subject to compliance with the provisions of the Act and the rules framed thereunder, the Directors may participate in Board meetings by telephone or video conferencing or any other means of contemporaneous audio-visual communication which are capable of recording and recognising the participation of Directors and of recording and storing the proceedings of such meeting along with date and time.

(h) Resolution by circulation.

(i) A written resolution circulated to all the Directors or members of committees of the Board, whether in India or overseas, and signed by a majority of them (as are entitled to vote on the resolution) as approved shall (subject to compliance with the relevant requirements of the Act) be as valid and effective as a resolution duly passed at a meeting of the Board called and held in accordance with this Agreement and the Articles;

provided that the resolution shall be circulated in draft form, together with the relevant papers, if any, to all the Directors or members of the committee, as the case may be, at least 7 (seven) days in advance at the address of such Director or member registered with the Company;

provided further that if the resolution proposed to be passed by circulation pertains to a Reserved Matter Item, then such circular resolution shall be valid and effective only if it has received the prior written consent of the Investors in accordance with Clause 3.6 (*Reserved Matters*). However, on the Reserved Matters, once the Investors have given consent to such matter on agenda of the circular resolution, the Investors' Director or nominee shall be deemed to have given consent on such matter and the affirmative vote of the Investors' Director or nominee shall not be required for such Reserved Matter; provided that in the event the Investors have rejected or refused to give their affirmative vote relating to any Reserved Matter Item on the circular resolution, such Reserved Matter Item shall not be placed as an agenda before the Board of Director.

(ii) A resolution passed by circulation in accordance with sub-clause (i) above shall be noted at a subsequent meeting of the Board or committee thereof, as the case may be, and shall be made part of the minutes of such meeting.

(i) Minutes. The substance of the course of the proceedings of a Board meeting and the results thereof shall be recorded in minutes in the English language and shall bear the name and/or signature of the chairman, in accordance with the provisions of applicable Law.

3.5 **General Meetings**

(a) Frequency. An annual general meeting of the Company shall be held each calendar year within 6 (six) months following the end of the previous Financial Year of the Company. All other general meetings, other than the annual general meeting, shall be extraordinary general meetings. All Shareholders' meetings shall be convened by the Company or by any Shareholder and held in accordance with applicable Law and the Articles.

(b) Notice. A minimum 21 (twenty-one) days' prior written notice shall be provided to all Shareholders of any proposed general meeting, accompanied by the agenda for such general meeting, unless approval for such general meeting to be called at shorter notice is given in accordance with the Act; *provided that* in case of an annual general meeting, the Board shall also provide the Company's previous Financial Year's audited financial statements to all Shareholders at least 21 (twenty-one) days before the annual general meeting is held to approve and adopt the audited financial statements.

(c) Voting. At all general meetings of the Shareholders, resolutions put to the vote of the meeting (except relating to Reserved Matters Items) shall be decided on a show of hands, unless, before or upon the declaration of the results of the show of hands a poll is demanded by such Persons who meet the criteria as prescribed under the Act. On a poll, subject to the provisions of Clause 6.2 below, every Shareholder present in person, by proxy or if a company, by representative, shall have one vote for each Share held by such Shareholder. The Promoter agrees that the Promoter shall vote in favour of any specific matter in agenda before the general meeting in the same manner in which the Promoter has voted in the Board meeting.

(d) Minutes. The substance of the course of the proceedings of a general meeting and the results thereof shall be recorded in minutes in the English language and shall bear the name and/or signature of the chairman. The company secretary shall send a copy of the minutes of each general meeting to each Shareholder within 30 (thirty) days after each such meeting.

(e) Quorum. The quorum for all general meetings shall be a minimum of 2 (two) Shareholders, including at least 1 (one) representative of the Investors and the Promoter, being personally present at the general meeting and throughout the course of such meetings *provided however that* if a quorum is not present at any such meeting due to absence of the Investor's representative or the Promoter, then such meeting shall be adjourned without any action taken to a day that is 7 (seven) days from the date of the original general meeting at the same time and place. If such day on which the adjourned meeting is to be held is not a Business Day, then the meeting shall be held on the next day which is a Business Day. At such adjourned meeting, any 2 (two) Shareholders as are present at such meeting shall form a quorum, except for the purposes of taking action or decision relating to any Reserved Matter Item.

Provided however that if any Promoter representative is not present in the adjourned meeting, the said meeting shall adjourned once again by 7 (seven) days at the same place and same time as the adjourned meeting. If the Promoter representative is not present in the third adjourned meeting, such resolution shall be passed through postal ballot.

(f) Chairman and Casting Vote. The chairman shall be appointed by the Promoter. The chairman of the meeting shall have a casting vote only in relation to matters, actions or decisions which do not fall within the ambit of any of the Reserved Matter Items.

3.6 **Reserved Matters**

(a) Notwithstanding anything to the contrary contained in this Agreement, the Parties agree that the actions, decisions and resolutions set out in **Schedule 3** in relation to the Company ("**Reserved Matter Items**") shall not be taken (whether by the Board, any Director, any committee or the Shareholders of the Company) without the prior written consent of a representative of the Investors. However, on the Reserved Matters, once the Investors have given consent to any such matter on the agenda prior to the Board or Shareholders Meeting, the affirmative vote of the Investors/Investor Directors shall not be required for such Reserved Matter at the relevant Board/Shareholders Meeting;

(b) The Parties further agree that no Reserved Matter Item shall be placed on the agenda of a Board meeting, any meeting of a committee and/or Shareholders meeting without prior written consent of the Investors. Notice seeking consent for the Reserved Matter Item shall be given by the Company to the Investors along with all supporting documents and analysis. It is clarified that if any Reserved Matter Item is pending affirmation/rejection at the Investor's end, the same will not be included in the agenda of any forthcoming Board or Shareholders' meeting and the notice seeking consent for the Reserved Matter Item shall be treated as null and void.

4. COVENANTS AND UNDERTAKINGS

4.1 The Company and the Promoter, jointly and severally, covenant and agree with the

Investors that, at all times during the term of this Agreement, the Company shall, and the Promoter shall ensure that the Company shall:

(a) maintain Authorisations as required under applicable Indian Laws in respect of the Business and comply with all Laws, including Laws/Authorisations relating to environmental, health and safety requirements including any requirements under the Investors' Social and Environmental Policy and IFC Performance Standards, and maintain all books and records in relation to establishing such compliance;

(b) maintain such insurance cover which is required in the best interests of the Company and shall regularly pay the premia towards such insurance cover obtained by the Company;

(c) from the Execution Date till the adoption of Related Party Policy carry on all transactions with their respective Related Parties and/or Affiliates strictly on an arms' length basis;

(d) from the date of adoption of Related Party Policy, carry on all transactions with their respective Related Parties and/or Affiliates in accordance with the Related Party Policy;

(e) conduct its affairs in accordance with good corporate governance standards;

(f) cause Company, the Promoter Group and each of their respective officers, directors and employees (individually and collectively, a "**Company Representative**") to: (i) engage only in lawful practices in commercial operations and in relation to Governmental Authorities; (ii) not make any bribe, rebate, payoff, influence payment, or any other payment that would be unlawful under any applicable Anti-Corruption Legislation and Anti-Corruption Guidelines provided at **Schedule 8**;

(g) institute, maintain and comply with appropriate policies, procedures, systems and controls that are in compliance with national laws and regulations and in furtherance of international best practices for anti-money laundering and combating the financing of terrorism ("**AML/CFT**"), including but not limited to:

a. a written policy on AML/CFT;
b. appropriate due diligence requirements;
c. record keeping;
d. reporting of suspicious transactions to authorities, where required; and
e. AML/CFT training for staff;

as may be suggested by the Investors in writing and agreed by the Company.

(h) institute, maintain and comply with internal policies, procedures and controls for the purpose of ensuring that it will not enter into any transaction (i) with, or for the benefit of, any of the persons or entities (including any successor in interest or ultimate beneficial owner thereof) named on lists from time to time promulgated by, or (ii) related to any activity from time to time prohibited by, the United Nations Security Council or its committees pursuant to any resolution issued under Chapter VII of the United Nations Charter.

(i) not engage in (or authorize or permit any of their Affiliates or any other person or entity acting on its behalf to engage in), any Sanctionable Practice with respect to any transaction contemplated in this Agreement and/or Articles or otherwise. It is hereby clarified that a breach by an Affiliate of this Clause to the extent the Promoter Group do not have any powers to prohibit such breach shall not be a breach of this Clause. It is further clarified that where a breach by an Affiliate occurs without any notice to or knowledge of the Promoter Group it shall not constitute breach of this Clause.

(j) not make or hold any investments in any entity that (A) is sanctioned pursuant to United Nations Security Council resolutions issued under Chapter VII of the United Nations Charter; (B) is on the World Bank Listing of Ineligible Firms and Individuals or (C) has been convicted, indicted or subjected to any similar criminal sanction, by any court or governmental body of competent jurisdiction, for engaging in money laundering or financing of terrorism or any Sanctionable Practice.

(k) on becoming aware of any violation of the Integrity Requirements, it shall promptly notify the Investors.

(l) upon being notified by the Investors of its concern that there has been a violation of the Clauses 4.1(e) to (j), the United Nations Security Council Resolutions, any Sanctionable Practices in relation to the foregoing, the Company shall cooperate in good faith with the Investors and its representatives in determining whether such a violation has occurred, and shall respond promptly and in reasonable detail to any notice from the Investors, and shall furnish documentary support for such response upon such request.

(m) the Promoter Group shall not Transfer, and the Company shall not permit the Transfer of, any of their interests in the Company to any person or entities (A) named on lists promulgated from time to time by the United Nations Security Council or its committees pursuant to any resolution issued under Chapter VII of the United Nations Charter; (B) named on the World Bank Listing of Ineligible Firms and Individuals (see www.worldbank.org/debarr or any successor website or location); or (C) convicted, or subjected to any similar criminal sanction, by any court or governmental body of competent jurisdiction, for engaging in money laundering or financing of terrorism or any Sanctionable Practice, or in each case, to any successor in interest or ultimate beneficial owner thereof.

(n) on sale of office bearing No. 708 on the 7th floor, Gateway Plaza, Hiranandani Garden, Powai, Mumbai the Company shall and the Promoter shall ensure that the sale proceeds of the said premises are infused into the Company and recorded in the books of the Company;

(o) cause the Company to duly pay and/or make provisions for dues and/or Taxes payable under Law;

(p) complies with all the recommendations contained of the environmental and social due diligence report which is more particularly set out in **Schedule 9**;

(q) delivers to the Investors within 45 days after the end of each Financial Year, the Annual Monitoring Report in the format provided by the Investors, consistent with the requirements of this Agreement confirming compliance with **Schedule 9**, the social and environmental covenants set forth in Section in this Agreement, identifying any non-compliance or failure, and the actions being taken to remedy any such deficiency.

(r) notify the Investors within 36 hours after its occurrence, of any social, labour, health and safety, security or environmental incident, accident or circumstance having, or which could reasonably be expected to have, any material impact on the implementation or operation of the Project in compliance with the Investors' Social and Environmental Policy or a material adverse effect, specifying in each case the nature of the incident, accident, or circumstance and the impact or effect arising or likely to arise there from, and the measures the Investee is taking or plans to take to address them and to prevent any future similar event; and keep the Investors informed of the on-going implementation of those measures.

(s) schedule a review meeting between the Investors and Promoter every month to discuss various aspects of the Business;

(t) comply with the Dividend Policy;

(u) notify the Investors promptly in writing of, and contemporaneously provide the Investors with true and complete copies of, any and all information or documents relating to any event, transaction, or circumstance occurring after the Execution Date that:

(i) causes or will cause any material covenant or agreement of the Promoter Group or the Company made under the Transaction Documents and any other ancillary agreement(s) between the Parties to be breached;

(ii) renders or will render untrue any of the Representations and Warranties (as defined in the Erstwhile IA);

(iii) results in any Material Adverse Change,

and, without prejudice to the rights and remedies available to the Investors under this Agreement or applicable Law, the Company, the Promoter Group shall use all reasonable efforts to cure, any such breach or misrepresentation or event, whether occurring or arising before or after the Execution Date.

(v) FCPA and PMLA covenants. The Promoter Group and the Company hereby agree and undertake, and agree to cause any Subsidiaries of the Company (present or future) to agree and undertake, that:

(i) they and/or their Affiliates shall not engage, by themselves directly or by authorizing any Person to do so, in any offering, giving, receiving, or soliciting, any money, gifts, gratifications or any other thing of value to any Government Official (as defined herein below) or any other Person, that will amount to a violation of the U.S. Foreign Corrupt Practices Act; 15 U.S.C. §78dd-1, et seq. as amended (the "**FCPA**"), and the Prevention of Money Laundering Act, 2002 ("**PMLA**") and other equivalent applicable Law to the Company and/or the Subsidiaries and/or the Promoter Group and/or their respective Affiliates and/or any persons authorised by them, notwithstanding the applicability of the FCPA and/or the PMLA to the Company and/or the Subsidiaries and/or the Promoter Group and/or their respective Affiliates and/or any persons authorised by them, in relation to such conduct.

(ii) they shall not and further undertake to ensure that their respective directors, officers, representatives, employees, advisors and agents do not, make any offer, payment, promise to pay or authorise the payment of any money, or other property, gift, promise to give, or authorization of the giving of anything of value to any government official (including without limitation, any tax or customs official, any employee of a government owned or controlled company, or of a public international organization, or any person acting in an official capacity on behalf of a government, government owned or controlled company, or public international organization), or to any arbitration tribunal, or to any political party or an employee of any political party, domestic or foreign (or official thereof) ("**Government Official**") or to any other Person who was or is in a position to help or hinder the Business of the Company, its Subsidiaries, the Promoter Group and their respective Affiliates: (i) with the intent or purpose of influencing such Government Official or other Person in his official capacity, inducing such Government Official to do or omit to do any act in violation of the lawful duty of such official, or securing any improper advantage; (ii) inducing such Government Official to use his influence with a government or instrumentality thereof to affect or influence any act or decision of such government or instrumentality; (iii) that would cause the Company, its Subsidiaries, the Promoter Group and/or their respective Affiliates and their respective directors, and employees to violate or be in violation of any applicable Law (including without limitation the FCPA, as amended from time to time, notwithstanding the applicability of the FCPA and/or the PMLA to the Company and/or the Subsidiaries and/or the Promoter Group and/or their respective Affiliates and/or any persons authorised by them, in relation to such conduct) or subject it or them to damages or penalties in a civil or criminal proceeding; or (iv) that could reasonably be expected to have a material adverse effect, if not discontinued.

(iii) the Company and the Subsidiaries shall comply with the FCPA policy, as adopted by the Board.

(iv) each of the Company, the Subsidiaries, the Promoter and their Affiliates are: (a) not currently identified on the Specially Designated Nationals and Blocked Persons List maintained by the U.S. Office of Foreign Assets Control, Department of the Treasury ("**OFAC**") and/or on any other similar list maintained by OFAC or any other U.S. governmental agency pursuant to any authorising statute, Order or regulation, and (b) not a person or entity with whom a citizen of the United States is prohibited to engage in transactions by any trade embargo, economic sanction, or other prohibition of United States Law, regulation, or Order of the President of the United States.

(v) they and their Affiliates and their respective directors, officers, representatives, employees, advisors and agents have not provided or collected funds with the intention that they be used, or in the knowledge that they are to be used, in order to carry out terrorist acts or support any terrorist organization.

(vi) the Company, its Subsidiaries and the Promoter (as applicable) shall issue to the IBEF IIA, a certificate on an annual basis, in a form and substance satisfactory to the IBEF IIA, certifying compliance with the provisions of this Clause.

(vii) The Company and its Subsidiaries shall adopt at their Board meetings and implement all compliance related policies and procedures in relation to matters set out in this Clause 4.1(v), as the Investors may deem necessary from time to time.

4.2 **Covenants of the Promoter**

(a) The Promoter shall ensure timely performance of all of the obligations required to be performed and/or complied with and/or undertaken by the Company under the Transaction Documents.

(b) The Promoter shall ensure that the Company complies with all the recommendations contained in **Schedule 9**.

(c) The Promoter shall ensure that the Company is not in any manner impacted by any personal liabilities of any of the Promoter Directors or the Promoter or the Promoter Group Shareholders.

(d) The Promoter Group undertakes to not create any Encumbrance on any of the Securities legally or beneficially owned by the Promoter Group at any point of time without the prior written consent of the Investors, except as permitted under this Agreement or when required to do so by banks / financial institutions for Company's borrowings in the Ordinary Course of Business.

(e) The Promoter Group and their respective Affiliates irrevocably agree and undertake that they shall not have any recourse against the Company in any manner whatsoever and/or seek any assistance from the Company in relation to their personal borrowings and/or guarantee and indemnity obligations save and except the guarantees and indemnity obligations assumed by the Promoter for and on behalf of the Company.

(f) The Promoter undertakes to assist in obtaining necessary Authorisations, financing and guarantees necessary for the operations of the Company. In addition, the Promoter agrees and undertakes not to: (i) charge commission or any other charges from the Company in relation to obtaining Authorisations for the Company; (ii) charge commission or any other charges in relation to provision of personal guarantees by the Promoter to banks/financial institutions with respect to the loans and other facilities obtained by the Company.

(g) The Promoter shall be responsible for the implementation of the Business Plan and for the day-to-day management and operations of the Company,

(h) The Promoter shall ensure that all the Key Management Persons shall be employees of the Company and may not be removed from their role without prior consent of the Investors.

(i) Other than spending the same time and focus on the Ancillary Entities as the Promoter have spent prior to Closing (as defined in the Erstwhile IA), the Promoter shall focus his remaining entire time and efforts completely on the Company and its Business as long as the Investors hold Securities in Company. For avoidance of doubt, it is stated that the Promoter shall at all points of time be entitled to commit the same amount of time towards the Ancillary Entities as he has been doing prior to Closing (as defined in the Erstwhile IA).

(j) Without the specific written approval of the Board (with the affirmative vote of the Investors), Promoter Group collectively will be not be paid more than an aggregate annual remuneration of Rs 3,00,00,000 (Rupees Three Crores only) by the Company (in their role(s) as employees and/or directors of the Company) for the Financial Year 2024-25 payable monthly with an increment @ 10% (Ten percent) per annum for the term of this Agreement. As on the Execution Date, Jawahar and Mr. Eshan Hemrajani shall be paid an aggregate annual remuneration of Rs 1,50,00,000 (Rupees One Crore Fifty Lakhs only) each for the Financial Year 2024 - 25.

(k) The Promoter will ensure strengthening of the senior management team of the Company in mutual discussions with the Investors including appointment of some new senior members in the management staff of the Company.

4.3 The Company undertakes and the Promoter undertakes to procure that:

(i) on the Execution Date, the Company shall convene a meeting of its Board to (a) take on record the resignation of Mr. Kamlesh Choudhari and Mrs. Sunita Choudhari as Directors; and (b) approve the convening of an extraordinary general meeting of its members;

(ii) within seven (7) days of Execution Date, the Company shall file Form DIR-12 with the jurisdictional registrar of companies in connection with the resignation of the Directors as mentioned in sub-Clause (i) above;

(iii) within 25 (twenty five) days of Execution Date, the Company shall convene an extraordinary general meeting of its shareholders to adopt the Restated Articles; and

(iv) within 30 (thirty) days of Execution Date, the Company shall file Form MGT-14 with the jurisdictional registrar of companies in connection with such adoption of the Restated Articles as mentioned in sub-Clause (iii) above.

4.4 **Business Plan**

The Promoter Group shall cause the Company to, and the Company shall, obtain the approval of the Investors with respect to the Business Plan on an annual basis (a draft copy of which shall be provided by the Company to the Investors on or before 20th March every year for the forthcoming Financial Year).

4.5 **Re-definition of the Promoter**

(a) The Company and the Promoter Group acknowledge that the Investors are not a 'promoter' or part of the 'promoter group' of the Company in general or as understood under the Act or the SEBI (Issue of Capital and Disclosure Requirements) Regulations, 2018, as amended from time to time. The Parties agree, acknowledge and undertake that the Company shall not under any circumstances declare, publish or disclose the Investors in any document related to a public offering/IPO, accounts or any public disclosures as "promoters" or part of the "promoter group" of the Company. The Company and Promoter undertake to take all necessary steps to ensure that the Investors shall not be considered as a "promoter" or part of the "promoter group" of the Company in any IPO-related filing made by the Company or the Promoter Group.

(b) Except as may be expressly agreed to the contrary hereto, the Promoter Group shall, subject to compliance with applicable Laws, ensure that any Securities as may be required to comply with the statutory lock-in requirements imposed by applicable Law on the promoters of companies, if any, shall be contributed solely by the Promoter Group and none of the Investor Securities shall be offered for any lock-in applicable to the promoters or promoter group. The Investors shall have the right to review, approve and seek appropriate amendments to all documents related to the IPO, accounts or public disclosures to ensure compliance with the provisions of this Clause 4.5.

5. NON-COMPETE AND NON-SOLICITATION

5.1 Non-Compete

(a) None of the Promoter, the Promoter Group Shareholders and/or their respective Affiliates shall, jointly and/or severally, directly or indirectly, and whether: (i) individually, through a partnership or as a shareholder, joint venture partner, collaborator, lender, financier, consultant, advisor, secondee, principal contractor or sub-contractor, director, trustee, committee member, office bearer or agent or in any other manner whatsoever (other than through shareholding of 5% (five Percent) or less in listed companies or by purchasing units of any mutual funds), or (ii) along with a Director, partner, consultant, manager, employee, Shareholder, agent or otherwise, and whether for profit or otherwise:

(i) engage in any business which competes with the whole or any part of the Business, except through the Company and its wholly owned subsidiaries; and/or

(ii) initiate any new activities or expansions to the Business other than through the Company and its wholly owned subsidiaries.

(b) The Parties have agreed that the Ancillary Entities shall not undertake any new activity which is (i) similar and/or competing with the Business and (ii) related to manufacturing and/or supplying of building materials, however, the Ancillary Entities shall continue to carry on their existing business/activities. The Promoter declares and confirms that the Ancillary Entities are not currently engaged in any business which competes with the whole or any part of the Business, other than the existing business/activities undertaken by the Ancillary Entities, as are set out in the fourth column of Schedule 11 hereto. Any activity or business which is not similar or competing to the Business can be undertaken by the Ancillary Entities.

(c) The Promoter and the Promoter Group Shareholders further agree that they will direct all commercial opportunities related to the Business that the Company is engaged in or intends to engage in and that are available to the Promoter and the Promoter Group, to the Company (and not to any other person or entity) other than the existing business/activities undertaken by the Ancillary Entities (as set out in the fourth column of Schedule 11 hereto).

(d) The Promoter and Promoter Group Shareholders agree and acknowledge that no separate non-compete fees are payable to the Promoter and Promoter Group Shareholders, and the consideration for the non-compete restriction contained herein is deemed to have been received under this Agreement and the Promoter and Promoter Group Shareholders also acknowledge the receipt and sufficiency of such consideration.

(e) For removal of doubt, for the purposes of this Clause 5.1, the Promoter and Promoter Group Shareholders shall be deemed to be indirectly engaged in the activities mentioned in Clause 5.1(a) above if any of them or any one or more of their respective Affiliates own(s) more than 5% ownership interest and/or financial interest in any entity carrying on any such activity.

5.2 Non-Solicitation

(a) The Promoter, Promoter Group Shareholders and the Investors acknowledge that the ability of the Company to conduct and operate its Business depends upon: (i) its ability to attract and retain skilled people and that the Company has and will continue to invest substantial resources in training such people, and (ii) its ability to attract and retain customers and business associates. The Promoter, Promoter Group Shareholders and the Investors hereby agree that the Promoter, the Promoter Group Shareholders and the Investors shall not:

(i) directly or indirectly, partner with or enter into any activity or hire or attempt to hire for any purpose whatsoever (whether as an employee, consultant, advisor, independent contractor, partner or otherwise) any employee of the Company or any Person who was an important employee of the Company at any time during the last 12 (Twelve) months of his/ her employment, and shall use its best efforts to prevent any of its Related Parties from taking any such action;

(ii) identify any employee as potential candidates for employment to any third party;

(iii) personally or through any other Person, approach, recruit or otherwise solicit employees of the Company or the Investors to work for any other employer; and/or

(iv) persuade any Person which is a client/customer/business associate of the Company, to cease doing business or to reduce the amount of business which any such client/customer/business associate has customarily done or might propose doing with the Company or canvas or solicit any business or custom similar to the Business.

5.3 The Parties acknowledge and agree that the restrictions in Clauses 5.1 and 5.2 above are considered reasonable for the legitimate protection of the Business and goodwill of the Company, but in the event that such restriction shall be found to be void under Law or otherwise, but would be valid if some part thereof was deleted or the scope, period or area of application were reduced, the above restriction shall apply with the deletion of such words or such reduction of scope, period or area of application as may be required to make the restrictions contained in this Clause valid and effective under Law and otherwise. Notwithstanding the limitation of this provision by any Law for the time being in force, the Parties undertake to at all times observe and be bound by the spirit of Clauses 5.1 and 5.2 above. *Provided however*, upon revocation, removal or diminution of the applicable Law or provisions, as the case may be, by virtue of which the restrictions contained in Clauses 5.1 and 5.2 were limited as provided hereinabove, the original restrictions would stand renewed and be effective to their original extent, as if they had not been limited by the Law or provisions revoked.

6. EXERCISE OF RIGHTS

6.1 Without prejudice to the other provisions of this Agreement, the Parties shall exercise all powers and rights available to them (including their voting rights and their rights as and in respect of Directors), in support of the provisions of the Transaction Documents and so as to procure and ensure that the provisions of the Transaction Documents are complied with in all respects by the Company.

6.2 The Promoter Group agrees that for the purposes of this Agreement, the Promoter and Promoter Group Shareholders will be considered as a single block of Shareholders and shall at all times act jointly.

6.3 The Parties agree and acknowledge that the Promoter shall be liable to the Investors to procure that each of the Promoter Group Shareholders performs his/her respective obligations under the Transaction Documents (including but not limited to in respect of voting their respective Shares, and transferring their respective Shares in terms of this Agreement), and without prejudice to the right of the Investors to proceed against any of the Promoter Group Shareholders, the Investors shall have recourse to the Promoter to for any breach of any obligations of the Promoter Group Shareholders.

6.4 If there is any ambiguity, inconsistency or conflict between the provisions of this Agreement and the Memorandum and Articles (as the case may be), such ambiguity, conflict or inconsistency shall be resolved by promptly taking all such actions as are necessary to amend the Memorandum and Articles (as the case may be) to eliminate such inconsistency or ambiguity from the Memorandum and Articles (as the case may be) and to replace it with a term that is consistent with this Agreement. In the meantime, while any such amendments to the Articles (as the case may be) are pending, no Shareholder shall seek to enforce the provision of the Articles, as the case may be, that is being amended so as to avoid the inconsistency with the provisions of this Agreement.

7. INFORMATION RIGHTS, INSPECTION AND MONITORING

7.1 The Company shall keep and maintain complete and accurate books of account in which full and correct entries shall be made of all financial transactions and the Assets and Business in accordance with Indian GAAP.

7.2 The Company shall provide to the Investors or to any representative of the Investors (as the Investors may specifically notify) and each of the Investor Directors, the following information, with or without specific request from the Investor:

(a) Audited annual financial statements (within 90 (ninety) days from the end of each Financial Year;

(b) Unaudited annual financial statements (within 45 (forty five) days from the end of each Financial Year;

(c) Unaudited quarterly financial statements (within 30 (thirty) days from the end of each quarter of each Financial Year;

(d) Unaudited monthly management information systems ("**MIS**") or other similar reports (in a format as specified by the Investor) with respect to each month (within 15 (Fifteen) days from the start of the following month;

(e) A proposed draft Business Plan for a Financial Year for approval in writing from the Investor, prior to being tabled before the Board (on or before 20th March for the forthcoming Financial Year;

(f) Within 7 (seven) Business Days, details of any litigation or judicial proceedings (including proceedings for winding-up or with respect to any notices received under the applicable Laws), proceedings or material dispute or adverse changes that impedes or which is likely to adversely affect the Company's Business or Assets or otherwise;

(g) Within 7 (seven) Business Days, details of any withdrawal of material banking and/or credit facilities of the Company, together with a description of the Company's efforts to restore adequate banking and/or credit facilities.

(h) Minutes of meetings of Board, committees of the Board and Shareholders of the Company (within 15 (Fifteen) days of the occurrence of such events;

(i) Within 10 (ten) days of expiry of every quarter of a Financial Year, provide declaration on Securities held and Encumbered to banks and financial institutions in the Ordinary Course of Business (as permitted under Clause 4.2(d)) by each of the Promoter Group Shareholders;

(j) Within 10 (ten) Business Days, details of any Force Majeure Event or any other event which results in or could result in any Material Adverse Change along with the estimated duration and the effect or probable effect which such Force Majeure Event is having or will have on the Company's performance and the measures which the Company and Promoter are taking or proposes to take for alleviating the impact of such Force Majeure Event; and

(k) Such other financial and accounting reports and other information as the Investors may reasonably request.

7.3 The Company shall give full access to the Investors and its authorised representatives (including its counsel, accountants, auditors and other professional advisors) to visit and inspect and take copies of all records, reports, books, contracts and commitments of the Company in relation to its properties, Assets, Liabilities, corporate and financial affairs, and to discuss and consult its business, operations, actions plans, budgets and finances with the Directors and Key Management Persons upon reasonable notice of 5 (five) Business Days.

7.4 The Investors shall have the right to appoint an external auditor with the mutual agreement and at the cost (subject to a maximum of Rs. 10,00,000 as fees) of the Company to ensure compliance by the Company, Promoter and the Promoter Group Shareholders with the terms and conditions and obligations contained in the Transaction Documents.

7.5 **United States Passive Investor Covenants**

(a) The Promoter and the Company hereby agree and undertake that for any years in which IBEF IIA or its Affiliates are a Shareholder (directly, indirectly or constructively) in the Company, the Company shall provide and the Promoter shall ensure that the Company does provide to IBEF IIA or its Affiliates, as the case may be, any information reasonably requested for the purposes of filing any tax return, amended tax return or claim for refund, determining a liability for taxes or a right to a refund of taxes, participating in or conducting any audit or other proceeding in respect of taxes, or claiming the benefit of any double tax treaty under which any withholding tax can be eliminated or reduced, or under which a refund of a tax credit may be claimed in each case relating to its subscription or holding of or enjoyment of rights attaching to the Securities including, without limitation, (i) information necessary for IBEF IIA, or its Affiliate, as the case may be, to determine whether the Company or any of its Subsidiaries is a "passive foreign investment company" ("**PFIC**") within the meaning of Section 1297 of the Internal Revenue Code ("**IRC**"), enacted by the United States of America Congress in Title 26 of the United States Code (26 U.S.C.).; and (ii) for each year for IBEF IIA, or its Affiliate, as the case may be, determines that the Company or any of its Subsidiaries was or may have been a PFIC, information (including complying with applicable reporting requirements) necessary in order to enable IBEF IIA, or its Affiliate, as the case may be, to make a timely "*qualified electing fund*" election pursuant to Section 1295 of the IRC or to make any similar election under any successor provision or legislation.

(b) IBEF IIA will hereby be designated as the United States tax matters shareholder and shall be authorized to:

(i) make on behalf of the Company and any of its Subsidiaries and all United States tax elections, including an entity classification election and;

(ii) provide on behalf of the Company and any of its Subsidiaries and all information necessary to file, or assist with the filing of, all United States tax documentation, including a request for taxpayer identification number.

(c) Without limitation to any other provisions in this Agreement, the Company agrees that it will, and the Promoter shall ensure that the Company will:

(i) provide IBEF IIA or its Affiliates, as the case may be, with sixty (60) days prior notice and shall consult with IBEF IIA with respect to any significant transfer, acquisition, liquidation, etc. of Equity Shares or a majority of the assets of the Company or any of its Subsidiaries;

(ii) discuss the US tax implications informed of by IBEF IIA of any such transaction with IBEF IIA and its advisers, and consider reasonable recommendations by IBEF IIA to ameliorate US tax issues that may arise in connection with such transaction; and

(iii) provide IBEF IIA with sixty (60) days prior notice and shall consult with the Investors with respect to any inter – corporate loans and deposits or third party financings, re-financings, loans, guarantees, or other similar indebtedness.

8. TRANSFER OF SECURITIES

8.1 Restriction on Transfer of Securities

(a) The Promoter Group shall not Transfer any Securities or any right, title or interest in any Security held by them unless the Transfer is in conformity with the provisions of this Agreement. Any Transfer or attempt to Transfer Securities by any of the Parties in breach of this Agreement shall be null and void *ab initio*, and shall not be binding on the Company and the Company shall not register such Transfer.

(b) Other than as provided in this Agreement, the Promoter Group shall not place their Securities in a voting trust or enter into a voting agreement or similar arrangement with respect to their Securities. This prohibition shall not apply to proxies granted in accordance with the Articles and applicable Law.

(c) The Shareholders hereby agree that the Transfer restrictions in this Agreement (and subsequently incorporated into the Articles) shall not be capable of being avoided by the holding of Securities indirectly through any other Person, which Person (or its shares or interest or holding) can be sold/Transferred in order to dispose of an interest in the Securities.

(d) Notwithstanding anything to the contrary contained in this Agreement, the Parties agree that the restrictions under this Agreement on Transfer by the Promoter on the Securities held by them shall, subject to the Investor's written consent, not apply to any Encumbrance required to be created for the purpose of collateral to secure any loans or borrowings obtained by the Company in the Ordinary Course of Business.

(e) If a Person holding Securities in accordance with the provisions of this Agreement by virtue of being an Affiliate of a Party (such Party being hereinafter called the "**Original Party**"), ceases to be an Affiliate of the Original Party, the Original Party shall acquire or cause an Affiliate, to acquire, full and unconditional title in and to all of the Securities then held by such Person ceasing to qualify as an Affiliate. Notwithstanding anything contained in this Agreement, this Clause 8.1(e) shall not apply to any In-Specie Distribution.

8.2 **Regulatory Approvals**

Where any Investor requires Authorisations or shareholder consent for an acquisition or disposal of Investor Securities pursuant to this Agreement then notwithstanding any other provision of this Agreement the Investor shall only be obliged to acquire or dispose of Investor Securities once such consent or approval is obtained, and the Parties shall use their reasonable endeavours to obtain any such required approvals. In computing the period within which the transactions contemplated in this Clause 8 should be completed, the time required for obtaining the necessary Authorisations shall not be included.

8.3 **Transfer by the Promoter**

(a) *Lock in*: Except as specifically permitted under Clause 8.3(b) (Permitted Transfers) the Promoter Group shall not Transfer any of the Securities held by them till such time as the Investors hold 8% (eight percent) of the Equity Share capital on a Fully Diluted Basis ("**Lock-In Period**").

(b) *Permitted Transfers during Lock-in Period*: During the Lock In Period, the following Transfer of Securities by the Promoter Group shall be permitted ("**Permitted Transfers**"):

(i) The Promoter and/or the Promoter Group Shareholders shall be entitled to Transfer in aggregate, up to a maximum of 5% of the Equity Share capital collectively held by the Promoter and the Promoter Group Shareholders on a Fully Diluted Basis (i.e. up to a maximum of 3% of the Equity Share capital on a Fully Diluted Basis) (the "**Liquidity Shares**") to any Third Party in case of any exigency. It is clarified that the Investors' Tag Along Right under Clause 8.4 (*Investor Tag Along Right*) shall not apply to any Transfer under this Clause 8.3 (b)(i). The purchaser of such Liquidity Shares shall be required to sign a Deed of Adherence to such Transfer. The price per Equity Share for such Transfer of Liquidity Shares shall be determined through a value discovery process by an independent valuer appointed by the Company and Promoter.

(ii) In addition to the Transfer of the Liquidity Shares by the Promoter Group Shareholders, the Promoter Group Shareholders shall be permitted to transfer any of their Securities to the Promoter, and such Transfer shall not be subject to any restrictions under this Agreement including the Tag Along to the Investor.

(c) *Transfers Post the Lock-in Period*: Post the Lock-In Period and subject to the provisions of Clause 8.1 above, the Promoter Group shall be entitled to Transfer the Securities held by them *provided however that* (i) the Promoter shall give the Investors at least 14 (fourteen) Business Days' prior written intimation before the date of entering into any agreement, arrangement or understanding with respect to such Transfer; and (ii) such Transfer shall be subject to the Investors' Tag Along Right.

8.4 **Investor Tag Along Right**

In the event any Person in the Promoter Group is desirous of making a Transfer of any Securities held by him to any Person ("**Purchaser**") pursuant to Clause 8.3(c), then such Person ("**Transferring Shareholder**") shall ensure that the Investors have the option of exercising their tag along right in terms of this Clause ("**Tag Along Right**"):

(a) The Transferring Shareholder shall deliver a written notice to the Investors offering ("**Tag Notice**") setting forth the following details: (i) the number of Securities proposed to be sold to the Purchaser ("**Sale Securities**"); (ii) the consideration, terms of payment and all other terms and conditions for the proposed Transfer; and (iii) the identity of the Purchaser. In the event that the proposed consideration for the Transfer includes consideration other than cash, the Tag Notice shall include a calculation of the FMV of such consideration as determined by any Big Four Accounting Firms, or any other accounting firm mutually acceptable to the Parties, appointed and remunerated by the Transferring Shareholder. It is further agreed between the Parties that in the event that the proposed consideration for the said Transfer includes consideration other than cash, then the Investors shall have an option to call for and receive the cash equivalent of any non-cash component of the consideration to be received by the Transferring Shareholder.

(b) Upon receipt of the Tag Notice, each Investor shall be entitled to (but not obliged to) exercise its Tag Along Right by offering for sale the Investor Securities held by it up to a maximum equal to the Investor Tag Limit (computed on a Fully Diluted Basis), for the consideration and on terms and conditions mentioned in the Tag Notice or any other terms and conditions as may be mutually agreed in writing between the Investor, the Transferring Shareholder and the Purchaser (the above terms, as applicable, shall be referred to as "**Tag Along Terms**"). Each Investor shall be entitled to exercise the Tag Along Right by delivering a notice in writing to the Transferring Shareholder ("**Tag Along Acceptance Notice**") within 15 (Fifteen) days from the date of the Tag Notice ("**Tag Along Acceptance Period**") setting out the number of Investor Securities which the Investor desires to sell to the Purchaser, within the Investor Tag Limit ("**Tag Along Securities**"). The Tag Along Acceptance Notice shall constitute a binding obligation: (i) on the Transferring Shareholder to ensure that the Purchaser purchases the Tag Along Securities, and (ii) on the Investor to Transfer the Tag Along Securities to the Purchaser, simultaneously with the Sale Securities, and in accordance with the Tag Along Terms.

(c) If any Investor issues the Tag Along Acceptance Notice, the closing of any purchase of the Tag Along Securities by the Purchaser from the Investor shall take place simultaneously with the closing of the purchase of any Sale Securities by the Purchaser from the Transferring Shareholder, which shall in no case be later than 60 (Sixty) days from the expiry of the Tag Along Acceptance Period. At such closing, the Investor shall deliver duly stamped and endorsed certificates representing the Tag Along Securities, accompanied by duly executed and/or stamped instructions/ instruments of transfer in relation to such Tag Along Securities. Such Investor shall make such standard representations and warranties regarding the Investor's rights, title and interest in the Tag Along Securities. Such Investor will not be required to provide any other representation, covenants or undertakings, or incur any obligations to the Purchaser or any Person.

(d) If the Purchaser is not willing to purchase the Tag Along Securities from an Investor, then the Transferring Shareholder shall not be entitled to Transfer any of the Sale Securities to the Purchaser. If the Purchaser is willing to purchase only a part of the Sale Securities and the Tag Along Securities, the number of Sale Securities to be sold to the Purchaser shall be proportionately reduced so as to ensure the Investor is able to sell its proportionate Tag Along Securities.

(e) Any Purchaser purchasing the Tag Along Securities shall deliver at such closing, payment in full for the Tag Along Securities and the Sale Securities (or part thereof in accordance with sub-clause (c) above, as the case may be) to their respective holders in accordance with the Tag Along Terms. At such closing, all of the parties to the transaction shall execute such additional documents as may be necessary or appropriate to affect the sale of such Securities to the Purchaser.

(f) If, (a) the Tag Along Acceptance Notice is not delivered by any Investor prior to expiry of the Tag Along Acceptance Period; or (b) the Investors indicate in writing to the Transferring Shareholder that they shall not exercise the Tag Along Right, the Tag Along Right will lapse, and the Transferring Shareholder shall thereafter be free to dispose of the Sale Securities within a period of 60 (sixty) days from the expiry of the Tag Along Acceptance Period, *provided however that* it shall (a) not sell the Sale Securities to any Person other than the Purchaser; (b) not sell the Sale Securities to the Purchaser for a consideration higher or more than 5% lower than Transfer Price, than the consideration and the terms set out in the Tag Notice.

(g) If the (a) Transfer of the Sale Securities to the Purchaser within 60 (sixty) days from the Tag Along Acceptance Period in accordance with Clause 8.4 (c); or (b) the sale of the Tag Along Securities by the Investors do not take place within the 60 (Sixty) days from the expiry of the Tag Along Acceptance Period in accordance with Clause 8.4 (f), the Tag Notice and the Tag Along Acceptance Notice (if any), as the case may be, shall lapse and the provisions of Clause 8.4 shall apply *de novo* to any proposed Transfer of Securities by the Transferring Shareholder, including the requirement for the Transferring Shareholder to issue a fresh Tag Notice, and obtain another Tag Along Acceptance Notice / approval (if required) from the Investor.

(h) Notwithstanding anything contained in this Agreement, in the event the Promoter Group is desirous of making a Transfer of any Securities held by them to any Person pursuant to Clause 8.3(b) and such Transfer results in a change in Control of the Company, the Investors shall have a Tag Along Right to the extent of Investors' entire shareholding in the Company on Fully Diluted Basis and the provisions laid down in this Clause shall mutatis mutandis be applicable to such Transfer by the Promoter Group.

(i) For the purposes of this Clause "**Investor Tag Limit**" shall mean (a) in case no change in Control of the Company is taking place pursuant to a Transfer as contemplated herein, {number of Equity Shares represented by the Sale Securities on a Fully Diluted Basis / number of Equity Shares of the Company (on a Fully Diluted Basis)} * (number of Equity Shares held by the Investors on a Fully Diluted Basis).

For the purpose of this Clause "**Control**" with respect to a Person, includes the right to appoint majority of the directors or to control the management or policy decisions of such Person exercisable by a Person or Persons acting individually or in concert, directly or indirectly, including by virtue of their shareholding or management rights or shareholders agreements or voting agreements or in any other manner and includes, without prejudice to the generality of the foregoing, where the acquirer along with person(s) acting in concert with the acquirer, subsequent to such transaction are, directly or indirectly holds 51% in the Company.

8.5 **Investor Transfer/Encumbrance**

(a) Each Investor shall be free to Transfer any of their Investor Securities to any Affiliate without any restrictions whatsoever, subject to the Affiliate executing a Deed of Adherence.

(b) Notwithstanding anything to the contrary stated in the Transaction Documents, there shall be no obligation whatsoever on the Investors to provide any debt or other form of financial assistance to the Company or to provide any guarantees in relation to any debt or financial assistance to be obtained by the Company, from any other Person. Further, the Investor Securities shall not be offered or required to be offered as collateral to secure any loans or borrowings obtained by the Company from any banks, financial institutions, non-banking financial companies or otherwise, and hence no Encumbrance shall be created for this purpose over the Investor Securities at any time during the subsistence of this Agreement.

(c) In relation to any Transfer of Securities by any Investor, such Investor may choose, at its sole discretion, to Transfer such rights as it may deem fit, to such Transferee. It is clarified that the rights in relation to the Reserved Matters shall be exercised only by either the acquirer or the Investors, in case of partial transfer of Investor Securities. It is further clarified that the transferees shall not be entitled to any rights that the Investors are not entitled to.

8.6 **Deed of Adherence**

As a precondition of any Transfer under this Clause 8 above, the Person to whom the Securities are transferred must execute a Deed of Adherence (in accordance with the appropriate form as attached to this Agreement) to become a party to this Agreement and become legally bound by the terms of this Agreement prior to or simultaneous with the Transfer of the Securities. In the event of a Transfer being made by the Investors, the Investors shall identify in such Deed of Adherence which of the rights of the Investors will be Transferred to such acquirer. The Deed of Adherence as attached to this Agreement shall accordingly be modified by the Investors.

9. ANTI-DILUTION AND PRE-EMPTIVE RIGHTS

9.1 Any issuance or allotment of any Securities by the Company shall be subject to the provisions of this Clause 9.

9.2 **Anti-Dilution**

(a) Subject to the provisions of Clause 3.6 (Reserved Matters), in the event of any issue and allotment of Securities where the price at which such Securities are issued is below the Investor Per Share Price (as readjusted for stock split, consolidation, reorganization, recapitalization, sub-division, amalgamation, re-construction or similar event), the Investors shall be entitled, at their option, to subscribe to additional Securities at the lowest price permissible under applicable Law as per the provisions of **Schedule 6** (*Anti-Dilution Entitlement*), and/ or at the option of the Investor, to adjust the conversion formula such that the Investors receives the additional Shares, as calculated in **Schedule 6** (subject to applicable Law) for the Investor Securities and/ or at the option of the Investors, to transfer such additional Shares, as calculated in **Schedule 6** to any Person who is not a Competitor and without transferring any rights available to the Investors under this Agreement to such Person, along with the Anti-Dilution Entitlement provided to such Person; provided further that the Investors shall not be entitled to this right of anti-dilution in the following circumstances:

(i) Any bonus issue of Securities;

(ii) Any stock split, consolidation or other similar action in respect of the Share capital of the Company;

(iii) Any other reorganization, recapitalization, sub-division or reduction of capital, buy-back of securities, reclassification or other reconstruction or adjustment or similar event in respect of the Equity Share capital and any amalgamation or reconstruction affecting the Equity Share capital;

(iv) Any issue and allotment of Equity Shares pursuant to conversion of Share Equivalents; or

(v) Any issuance of Securities to any Potential Investor due to refusal by the Investors in exercise of their Pre-emptive Right as per Clause 9.4 below.

9.3 **Investors' Shareholding Percentage to be Maintained**

The Company and the Promoter Group shall ensure that the aggregate percentage of Investor Securities in the Company, on a Fully Diluted Basis, immediately prior to any action of stock split, stock dividend, consolidation, adjustment, reconstruction, corporate re-organization or such similar action by the Company, shall not reduce post consummation of such action.

9.4 **Pre-Emptive Rights**

(a) Without prejudice to the Investor's anti-dilution right in accordance with Clause 9.2 above and subject to the provisions of Clause 3.6 (Reserved Matters), in the event of issue of Securities other than as set out in Clauses 9.2(a)(i) to 9.2(a)(v) above, at any point of time ("**Fresh Offering**") to any Person ("**Potential Investor**"), the Company shall offer and the Promoter Group shall cause the Company to offer to the Investor, such number of Securities forming part of the Fresh Offering, in proportion to the Investor's shareholding percentage in the Equity Share capital (on a Fully Diluted Basis) immediately prior to the Fresh Offering ("**Investor Entitlement Securities**"), and on terms and conditions no less favourable than those being offered to any other Person in the proposed Fresh Offering ("**Pre-emptive Right**").

(b) The Fresh Offering shall be carried out by the Company by issuing a written notice to the Investors ("**Issuance Notice**") setting forth in detail the terms of the Fresh Offering, including:

(i) the proposed issuance price ("**Issuance Price**");

(ii) the time period for subscribing, shall be 60 (sixty five)days from the date of the receipt of the Issuance Notice, unless extended for such period as may be mutually agreed to between the Company and the Investor; and

(iii) the number of Investor Entitlement Securities.

(c) If any Investor is desirous of exercising the Pre-emptive Right, then it shall inform the Company in writing ("**Pre-Emptive Notice**") within a period of 21 (twenty one) Business Days from the date of receipt by the Investor of the Issuance Notice stating its desire to exercise its Pre-emptive Rights and specifying the number of the Investor Entitlement Securities to which it proposes to subscribe ("**Accepted Securities**").

(d) Such Investor may exercise the Pre-emptive Rights either by itself or through its Affiliate(s), subject to such Affiliate(s) executing a Deed of Adherence Provided the Affiliate (s) are not Competitor(s).

(e) If an Investor sends a Pre-Emptive Notice, then within the time period prescribed in the Issuance Notice, the Company shall issue, and such Investor shall pay for and subscribe to, simultaneously along with other subscribers to the Fresh Offering, the Accepted Securities at the Issuance Price and on the terms and conditions set out in the Issuance Notice;

Provided that in the event that any Investor exercises its Pre-Emptive Rights and the Accepted Securities are less than the Investor Entitlement Securities, the Company shall be entitled to issue the balance Investor Entitlement Securities to the Potential Investor at a consideration which is not lower than the Issuance Price, which would then result into the dilution of the Investors.

(f) Except as otherwise provided in this Clause, failure by the Investors to either (i) give the Pre-Emptive Notice within the 21 (twenty one) Business Days' period as provided in Clause 9.4(c) above; or (ii) settle the payment of consideration for the Accepted Securities to the Company in accordance with the conditions contained in Clause 9.4(e), shall be deemed a waiver by the Investors of its rights under this Clause 9.4 with respect to such Fresh Offering and the Company shall be entitled to issue the Issuance Securities to the Potential Investor within 60 (Sixty) days of the issuance of the Issuance Notice at a consideration which is not lower than the Issuance Price, which would then result into the dilution of the Investors; *provided that* if the Investors fail to give the Pre-Emptive Notice required under Clause 9.4(c) solely because of the Company's failure to issue the Issuance Notice or to fail to comply with the notice provisions of Clause 14 in such issuance, then the Company shall not issue Securities to the Potential Investor pursuant to this Clause 9.4 and if purported to be issued, such issuance of Securities shall be void.

(g) The issue of Securities pursuant to the Fresh Offering shall be completed within the time set out in the Issuance Notice, failing which the right of the Company to make the Fresh Offering shall lapse and the provisions of this Clause 9.4 shall once again apply to such Fresh Offering.

9.5 **ESOP/ Employee Benefit Plan**

(a) The Company shall formulate and adopt an employee stock option plan for incentivising the existing and future employees of the Company (excluding the Promoter and the Promoter Group Shareholders), the terms and conditions whereof shall be determined by mutual consent of the Promoter and the Investors ("**ESOP Plan**"). The ESOP Plan shall provide for transfer of Equity Shares amounting to a maximum of 2% (two percent) of the total Equity Share capital on a Fully Diluted Basis as of the date of adoption of the ESOP Plan and transfer of such 2% Equity Shares by the Promoter shall not be dilutive to the Investor Securities. The mechanism for the same would be mutually decided between the Promoter and the Investors. In the event that the Promoter represent to the Investors that they do not wish to create the ESOP Plan for the entire 2% (two percent) as mentioned above, then the unallocated Equity Shares shall be transferred to an employee welfare trust for the benefit of the employees (other than the Promoter and Promoter Group Shareholders) and the terms and conditions of such trust shall be determined by mutual consent of the Promoter and the Investors.

(b) All terms and conditions of the ESOP Plan (excluding the exercise price), shall be and approved by the Board, subject to compliance with Clause 3.6 (*Reserved Matters*). The exercise price of the stock options shall be determined by the Promoter, subject to such exercise price being not more than 80% (eighty percent) of the Investor Per Share Price.

(c) The vesting of the stock options under the ESOP Plan shall be governed by a committee constituted by the Board in accordance with the provisions of this Agreement where an Investor Director would be a part of such committee.

(d) In the event of any expansion of the ESOP Plan beyond what is contemplated herein pursuant to an agreement in this regard between the Promoter and the Investors, the Investor, the Promoter Group Shareholders and the Promoter's shareholding in the Company shall be diluted pro-rata to their respective shareholding in the Equity Share capital on a Fully Diluted Basis, pursuant to the issuance of any Securities arising from the exercise of any employee stock options issued pursuant to the ESOP Plan, and the Investors shall not be entitled to their rights under Clause 9.2 for such further issuance.

10. MORE FAVOURABLE RIGHTS

10.1 The Company, Promoter and Promoter Group Shareholders shall not, except with the Investor's consent provide any future investor in the Company with rights, benefits or privileges in relation to the Company which are more favourable than those provided to the Investors hereunder.

10.2 In the event any rights, benefits or privileges provided to any future investor by the Company are more favourable than the rights, benefits or privileges provided to any of the Investors hereunder, the Company, Promoter and Promoter Group Shareholders shall forthwith take such actions, including amendment of the terms hereof, terms of the Investor Securities and the Articles, to provide the Investors with the relevant more favourable rights, unless expressly waived by the Investors in writing.

11. RIGHT TO FINANCE/INVEST

11.1 The Company and the Promoter Group hereby acknowledge that the Investors and its Affiliates may finance numerous companies, some of which may be in competition with the Company and its Business. The Company and the Promoter Group confirm and acknowledge that the Investors or their Affiliates shall not be liable for any claim arising out of, or based upon the fact that any of them have financed/invested in any Competitor. The Company, Promoter and Promoter Group Shareholders hereby confirm that they will have no objection to the Investors and/or any Affiliates at any time and from time to time financing/investing in any Person engaged in the same or a similar business as the Business or entering into agreements with any Persons engaged in the same or a similar business as the Business.

11.2 It is agreed between the Parties that, if the Investors are considering to invest in future in any entity engaged in a business similar to the Business ("**Target**"), the Investors will in good faith discuss with the Target possibility of the Company to be a co-investor. In the event the Target is agreeable to accepting the Company as a co-investor the Investors shall discuss the said investment opportunity. Provided however that such discussion shall not adversely affect the ability of the Investors to independently invest in such entity.

11.3 It is further agreed between the Parties that if the Company is considering to invest in future in any entity engaged in a business similar to the Business which is in the knowledge of the investor, the Investors will not independently invest in such entity unless (i) with the prior consent of the Company and the Promoter or (ii) if the discussion between the Company and such entity has ceased.

11.4 The Investors undertake and acknowledges that the Investors shall at all points of time be under an absolute obligation to maintain confidentiality of the Confidential Material and confidentiality/propriety of the Intellectual Property Rights of the Company, Promoter and Promoter Group Shareholders. The Investors will at all points of time ensure reasonable measures are incorporated to prohibit any disclosure whatsoever of any information in relation to the Company with any such Person engaged in the same or a similar business as the Business.

11.5 Nothing contained in this Clause 11 shall affect the fiduciary duties of an Investor Director.

12. EXIT

12.1 The Company and the Promoter shall make best efforts to provide an exit to the Investors for Securities held by them through the following mechanism as set out below, at a price and on terms and conditions: (a) mutually acceptable to the Investors and the Promoter in relation to the exit mechanism set out in Clauses 12.2 and 12.3 below; and (ii) acceptable to the Investors in relation to the exit mechanism set out in Clause 12.4 below.

The Company shall, and the Promoter that procure that the Company shall appoint investment banker / merchant banker ("**Banker**") (acceptable to the Investors) by 30 September 2024 to conduct a process for (a) the sale of not less than 100% of the Securities of the Company to a third party purchaser (whether a strategic investor or a financial investor, and including a Competitor) ("**Third Party Purchaser**"), in one or more tranches, at a price and on terms and conditions acceptable to both the Investors and the Promoter (such sale, a "**Strategic Sale**") in accordance with Clause 12.2 below; or (b) an IPO, in accordance with Clause 12.3 below (such determination of whether a Strategic Sale or IPO will be conducted shall be made by the Investors).

12.2 **Strategic Sale**

(a) If the Investors decide to commence the process for a Strategic Sale as per Clause 12.1, the Banker may procure offers for Strategic Sale by way of auction or private sale or in such other manner which is most effective for value maximization of the Securities of the Investors. The costs and expenses payable to such Banker shall be borne by the Company.

(b) In a Strategic Sale, Investors should receive consideration for their Securities fully by way of cash, and there should not be any withholding (unless required under applicable Laws), escrow or deferred consideration unless agreed otherwise by the Investors.

(c) In a Strategic Sale, if required by the Third Party Purchaser, Investors shall only be required to provide customary warranties to the Third Party Purchaser relating to clear title to their Investor Securities, and legal authority and capacity of the Investors to transfer such Investor Securities. If required by the Third Party Purchaser, the Company and the Promoter shall provide such Third Party Purchaser with all representations, warranties, indemnities (including in relation to the Company and its business) subject to customary limitations of liabilities and procedures and covenants (including any non-compete or non-solicit obligations of the Promoter as may be discussed between the Company, Promoter and Third Party Purchaser).

12.3 **IPO**

If the Investors decide to commence the process for an IPO as per Clause 12.1 (or subsequently decide to commence the IPO process at any point in time), the Company and the Promoter shall make best efforts to conduct an IPO to facilitate the exit of Investors, in accordance with the provisions below:

(a) With the prior written consent of the Investors, the Company shall retain 1 (one) or more Banker/reputed merchant banker/investment bankers/advisors/ underwriters, to advise the Company regarding its options with respect to an IPO and to manage and/or underwrite the IPO.

(b) The Company, the Promoter and the Promoter Group Shareholders shall take all such steps, and extend all cooperation to each other and the investment banks, merchant banker, lead managers, underwriters and other Persons as may be required for the purpose of a IPO such as (i) preparing and signing the relevant offer documents; (ii) conducting road shows with adequate participation of senior management; (iii) entering into appropriate and necessary agreements; (iv) providing all necessary information and documents necessary to prepare the offer documents; (v) filing with appropriate Governmental Authorities; and (vi) obtaining any necessary consents from any Person and all relevant Governmental Approvals in relation to such IPO. The Company and the Promoter Group shall ensure that the IPO complies with applicable Law and Stock Exchange listing requirements.

(c) The Promoter Group agree that they shall exercise all voting rights and shall do all acts, deeds and things as may be required or desirable to effectuate the IPO.

(d) Any IPO shall necessarily have an offer for sale component as prescribed by the Investors, subject to the Applicable Laws. Each Investor shall have the right (but not the obligation) to sell, as a part of such offer for sale, its Investor Securities to the maximum extent permissible under applicable Law, in priority to the other

Shareholders. Upon any Investor offering its Investor Securities for sale at the time of the IPO, the Company and the Promoter shall complete all compliance and necessary formalities to ensure the listing of such Securities. In the event that the Investors choose not to exercise its rights under this Clause in relation to an IPO, the Company and the Promoter Group shall ensure that the requisite number of Equity Shares are made available to the public, whether by way of issuance of new Equity Shares by the Company and/or by way of sale of existing Equity Shares held by the Promoter, in order to meet the applicable minimum listing criteria for the purposes of the IPO. The timing, size of the issue, Stock Exchange of listing, mode, underwriters, legal advisors and other matters and/or terms of any IPO shall be based on the advice of the investment banker or merchant banker engaged by the Company in connection with such IPO, but shall be such as is approved by the Board and with prior written consent of the Investors.

(e) The Company shall bear all fees, costs and expenses of such IPO, for any disinvestments of Investor Securities by the Investors, including without limitation all registration, filing, qualification and similar fees (other than underwriting commission and discounts and attorneys' fees for the selling Shareholders) and all printers, attorneys' and accounting fees and disbursements. It is hereby clarified that provided that fees for the book running lead managers to the IPO shall be borne by the Company and the Shareholders in proportion to their respective proceeds from such IPO.

(f) In the event of the IPO, the Company agrees to, subject to applicable Law, and in addition to the other indemnity provisions under this Agreement, indemnify and hold harmless the Investors, their officers and directors and each Affiliate of the Investors who is a shareholder of the Company, from and against any and all Losses caused by any untrue statement or alleged untrue statement of a material fact contained in any statement or prospectus relating to the Securities and/or the Company (as amended or supplemented if applicable) or any preliminary prospectus, or caused by any omission or alleged omission to state therein a material fact required to be stated therein or necessary to make the statements therein not misleading.

12.4 **Secondary Sale**

(a) The Company and Promoter shall make best efforts to provide a full exit to the Investors, by way of a transfer of all Investor Securities of the Investors to a third party purchaser (a financial or strategic purchaser or group of purchasers, not being a Competitor on or before 31 March 2027, but including a Competitor after 31 March 2027), in one or more tranches, at such price and on such terms and conditions as acceptable to the Investors (such sale being a "**Secondary Sale**").

(b) In a Secondary Sale, Investors should receive consideration for their Securities fully by way of cash, and there should not be any withholding (unless required under applicable Laws), escrow or deferred consideration unless agreed otherwise by the Investors.

12.5 In a Secondary Sale, if required by the third party purchaser, Investors shall only be required to provide customary warranties to the third party purchaser relating to clear title to their Investor Securities, and legal authority and capacity of the Investors to transfer such Investor Securities. If required by the third party purchaser, the Company and the Promoter shall provide such third party purchaser with all representations, warranties, indemnities (including in relation to the Company and its business) subject to customary limitations of liabilities and procedures) and covenants (including any non-compete or non-solicit obligations of the Promoter as may be discussed and agreed between the Company, Promoter and Third Party Purchaser).

12.6 It is clarified that after 30 September 2024, the abovementioned provisions in relation to Strategic Sale, IPO and Secondary Sale shall apply simultaneously, and continue to operate without any limitation of time.

12.7 **Drag Along Right**

(a) In the event the Investors have not been able to exit fully by 31 March 2027, from 1 April 2027, the Investors (the "**Dragging Shareholders**"), shall have the right (but not the obligation) to require the Promoter and the Promoter Group Shareholders (together the "**Dragged Shareholders**") to sell all (and not less than all) of the Securities held by the Dragged Shareholders ("**Dragged Securities**") to any third party purchaser (including any Competitor) (such purchaser, the "**Drag Purchaser**"), in a sale of Securities by the Investors to the Drag Purchaser ("**Drag Along Right**").

(b) If the Dragging Shareholders choose to exercise the Drag Along Right, they shall provide a written notice to the Dragged Shareholders ("**Drag Notice**"), specifying: (i) the proposed consideration payable and the terms on which the Securities are proposed to be Transferred to the Drag Purchaser (the price per Security for the Dragged Securities shall be the same as the price per Security at which the Securities of Dragging Shareholders are being purchased by the Drag Purchaser); (ii) the identity of the Drag Purchaser; (iii) the indicative timelines for the sale of the Securities to the Drag Purchaser and (iv) a confirmation that that the Drag Purchaser has been informed of the drag right set out in this Clause 12.7, and that the Drag Purchaser has agreed to purchase the Securities in accordance with the terms of this Clause 12.7.

(c) Upon receipt of the Drag Notice, all Dragged Shareholders shall be obligated to sell to the Drag Purchaser and the Drag Purchaser shall be obligated to purchase all Dragged Securities of the Company, basis the terms set out in the Drag Notice, and within the timelines indicated in the Drag Notice.

(d) Each Dragged Shareholder hereby agrees and acknowledges that the obligations under this Clause 12.7 will be binding on each Dragged Shareholder, and each Dragged Shareholder shall undertake all necessary actions, and shall cooperate to the fullest extent to ensure the Transfer of its Securities to the Drag Purchaser as per the provisions of this Clause.

(e) If required by the Drag Purchaser, (i) the Company, the Promoter and the Promoter Group Shareholders shall provide such Drag Purchaser with all representations, warranties, indemnities in relation to the authority, capacity and title of Dragged Securities, (ii) the Company and the Promoter shall provide such Drag Purchaser with all other representations, warranties, indemnities (subject to such customary limitations of liabilities and procedures as are set out in Schedule 9 of the Erstwhile IA) including in relation to the Company and its business and covenants (including any non-compete or non-solicit obligations of the Promoter); and (iii) the Investors shall provide such warranties to the Drag Purchaser as may be discussed and agreed between the Investors and the Drag Purchaser at such point in time.

12.8 **Free Transfers by the Investors**

Till the expiry of the Exit Period each Investor shall have the right (but not the obligation) to Transfer all their Investor Securities in whole or part to any Person whatsoever (excluding to any Competitor, unless such Transfer is pursuant to Clause 12.2 above). Notwithstanding the sentence above, it is agreed between the Parties that each Investor shall be free to Transfer any of their Investor Securities at any point in time pursuant to any In

Specie Distribution (irrespective of whether the transferees are Competitors or not), without any restrictions whatsoever, subject to transferee(s) executing a Deed of Adherence. In the event that the Investor(s) is/are unable to get full exit by 31 March 2027(“**Exit Period**”), then upon the expiry of such Exit Period, the Investors shall have the right (but not the obligation) to Transfer all their Investor Securities in whole or part to any Person whatsoever (including to any Competitor) without any restrictions on such Transfer, and shall have the right to assign any and all its rights under the Transaction Documents to such transferee provided that in case the Transfer of Investor Securities in whole or in part is to a Competitor (post the Exit Period), the right of the Investors and attached to the Investor Securities under this Agreement and consequently under the Restated Articles under Clause 9 (*Anti-Dilution and Pre-Emptive Rights*), *Clause 10 (More Favorable Rights)* Clause 19.15 (*Liquidation Preference*), shall not be transferred to such Competitor, and therefore rights of the Investors and attached to the Investor Securities under this Agreement and consequently under the Restated Articles to be transferred to such Competitor shall be: (a) right to nominate Investor Director(s) as per Clause 3.1(a)(i) (and related quorum rights) provided that, the Investor and such transferee shall on a best efforts basis endeavour that: (i) such director appointed by the transferee shall act as an executive director and shall not be appointed as a non-executive nominee director on the Board; and (ii) the promoter(s) of such transferee shall not be appointed as a director on the Board; (b) right to form quorum of a shareholders meeting as per Clause 3.5(e); (c) reserved matter rights as per Clause 3.6; (d) right to receive information as per Clause 7.2 and inspection right under Clause 7.3; (e) Investor Tag Along Right as per Clause 8.4; (f) free transferability right as per Clause 8.5; (g) right to finance/invest as per Clause 11; (h) exit rights as per Clause 12 (provided that the terms and conditions for such exit including the timelines thereof shall be mutually agreed between the Investors and the transferee at such point in time, and the terms and timelines in relation to the exit as set out in Clause 12 herein shall not be deemed to be extended to such transferee); (i) right to initiate and participate in the consequences upon occurrence of an event of default as per Clause 13; (j) special deadlock as per Clause 18; (k) further rights issuance as per Clause 19.1; (l) rights in subsidiaries as per Clause 19.3; and (m) right to assign as per Clause 19.12. In addition to the foregoing, the Parties hereby agree that the Investors shall not be entitled to assign its rights to such Competitor in relation to the obligations of the Company/ Promoters under Clauses 4.1, 4.2, 4.5, 5, 6.2, 6.3, 8.1 and 8.3, which shall be mutually determined between the transferee and the Company and the Promoters at such point in time. The Company and the Promoter Group shall facilitate and assist in any such Transfer as mentioned above (including provision of any information relating to the Company and its business in a time frame) and shall provide, and shall ensure that the management of the Company provides, such transition support, as may be reasonably requested by the Transferee and/or the Investor. Further the Promoter Group and the Company shall provide all reasonable assistance including management meetings, business plan, information, representations and warranties (including in relation to the Company and its Business), indemnities subject to customary limitations of liabilities and procedures and covenants (including non-compete and non-solicit) as may be discussed and agreed between the Company, Promoter and Third Party Purchaser, as may be required to consummate the transaction.

12.9 In case the Investors have been provided with any one of the exit options contained in Clauses 12.2 to 12.4 in relation to the entire shareholding of the Investors, on the terms and conditions and the price acceptable to the Investors in writing (at the definitive binding agreement stage), and subsequently, the Investors either choose to exit partially or choose not to exit at all (for reasons solely attributable to the Investors, and not for any other reasons including any regulatory or third party approvals required for such transaction not being obtained, or the binding agreement(s) being terminated by any party other than the Investors), then the Investors shall not have the right to exercise Drag Along Right as per

Clause 12.7, and claim an Event of Default on account of the Investor not having exited fully. It is clarified that all the exit rights of the Investors shall continue at all points in time.

13. EVENTS OF DEFAULT AND CONSEQUENCES OF EVENT OF DEFAULT

13.1 Events of Default

Subject to the provisions of Clause 19.16 (*Governing Law and Dispute Resolution*) of this Agreement, the occurrence of any of the following events or circumstances shall constitute an "**Event of Default**":

(a) the Company and/or the Promoter Group committing any breach of 3.6 (*Reserved Matters*), Clause 5 (*Non-Compete and Non-Solicitation*), Clauses 8.1, 8.2, 8.3, 8.4, 8.5, 8.6 (*Transfer of Securities*), and fails to remedy the breach within 120 (one hundred and twenty) days of being specifically required in writing to do so by the Investors;

(b) the Company and/or the Promoter have decided to conduct an IPO in terms of Clause 12.3 and subsequently the Company or the Promoter without the specific written consent of the Investors decide not to complete such IPO. It is clarified that non completion of the IPO due to regulatory issues or market driven conditions, or non-completion due to the merchant banker declining to proceed with the IPO shall not constitute an Event of Default;

(c) the Promoter committing fraud upon the Company and/or the Investors which has been established before an arbitrator or a court of competent jurisdiction;

(d) the Company and/or the Promoter Group committing any material breach of the covenants/obligations under the Transaction Documents and fails to remedy the breach within 120 (one hundred and twenty) days of being specifically required in writing to do so by the Investors;

(e) any arrangements, mergers, acquisitions, change of Control (except as it may be permitted pursuant to this Agreement), amalgamations, consolidations, spin-offs, sale of substantial Assets, compromise with creditors, other similar or related actions by the Company which is in contravention of the terms of the Transaction Documents;

(f) Fundamental Representations and Warranties (as defined in the Erstwhile IA) of the Promoter, Company and/or the Promoter Group Shareholders under the Transaction Documents are found to be misleading or incorrect or untrue in any respect;

(g) any wilful misrepresentations of representations and warranties of the Promoter, Company under the Transaction Documents which results into Loss of Rs. 5,00,00,000 (Rupees Five Crore only) to the Investors;

(h) occurrence of any Insolvency Event in respect of the Company or the Promoter; or

(i) the Business ceases or any material subsidiary of the Company ceases its business or the Promoter ceases to operate the Business as he was operating at the time of Closing (as defined in the Erstwhile IA), which has not been remedied within 120 (one hundred and twenty) days of being specifically required in writing to do so by the Investors.

13.2 **Consequences of an Event of Default**

(a) If any Event of Default occurs, the Company and the Promoter shall forthwith give notice thereof to the Investors in writing, specifying the nature of such Event of Default or of such event and the remedies proposed to be taken to cure the same.

(b) Upon occurrence of any Event of Default and expiry of the cure period in respect thereof, the Investors shall, at their option, without derogation from the rights and remedies available to the Investors under the Transaction Documents and/or under applicable Law, be entitled to exercise the rights as set out in this Clause 13.2 by giving a notice in writing to the Company and the Promoter ("**Default Notice**"):

(c) Upon the Investors issuing the Default Notice, the Investors shall at their option:

(i) Require the Company and the Promoter to, within 15 (Fifteen) days of the date of the Default Notice, cause the Company to buy-back the Investor Securities and/or require the Promoter to purchase the Investor Securities. It being hereby clarified and agreed that, notwithstanding anything contrary contained herein the Investors shall have the right to require the Promoter to purchase the Investor Securities in accordance with this Clause 13.2(c)(i) only upon the occurrence of the Event of Default set out in Clause 13.1(c) above.

Provided that such buy-back by the Company or the Purchase by the Promoter of the Equity Shares of the Investors shall be at a price per Security that shall be at the highest price permitted under applicable Law subject to a maximum of a price that shall provide the Investors with 24% IRR on the IBEF II Investment Amount or IBEF IIA Investment Amount towards the Investor Securities held by the relevant Investor, or FMV of the Equity Shares held by the Investors, whichever is higher.

OR

(ii) The Investors shall have the right to Transfer the Investor Securities to any Person and the right to require any or all Persons in the Promoter Group to sell any or all Securities held by them ("**Promoter Dragged Securities**") *provided however that* (a) the Promoter Dragged Securities and Investor Securities being Transferred shall constitute a maximum of 50.5% (fifty point five per cent) of the Equity Share capital if the purchaser is not a Competitor; or (b) in case the Purchaser is a Competitor, then the Promoter Dragged Securities and Investor Securities being Transferred shall constitute 50.5% (fifty point five per cent) of the Equity Share capital.

(d) In the event that the Investors exercise their rights under 13.2(c)(i) above, and the Company and Promoter fail to complete such buy-back or purchase of the Investor Securities (as the case maybe), the Investors shall have the right under Clause 13.2(c)(ii) above.

(e) It is hereby clarified that in respect of an Event of Default, if the Investors decide to invoke their rights under Clause 16 (*Indemnity*) of the Erstwhile IA, the Investors will then not be entitled to claim any rights under this Clause 13 (*Event of Default and Consequences of Event of Default*) and *vice versa*.

14. NOTICES

14.1 Any notice or other communication provided for or required under this Agreement shall be in writing and may be first transmitted by email transmission, and then confirmed by postage, prepaid registered post with acknowledgement due or by internationally recognised courier service, in the manner, as elected by the Party giving such notice at the recipient's below stated address:

(a) In the case of notices to **IBEF II:**

Address: 12th Floor, Motilal Oswal Tower,
Junction of Gokhale Road & Sayani Road,
Prabhadevi, Mumbai 400 025

Email: naveen.gupta@motilaloswal.com

For attention of: Mr. Naveen Gupta

(b) In the case of notices to **IBEF IIA:**

Address: Apex House, Bank Street, Twenty Eight, Cybercity, Ebene, Mauritius 72201

Email: jihane.muhamodsaroar@apexfs.group

For attention of: Jihane Muhamodsaroar

(c) In the case of notices to the **Company:**

Address: 503-504, 5th Floor, A Wing, Marathon Futurex,
Mafatlal Mills Compound, N.M. Joshi Marg, Lower Parel (East),
Delisle Road, Mumbai –400013

Email: jawahar@glasswallsystem.com

For attention of: Mr. Jawahar Hemrajani

(d) In the case of notices to the **Promoter:**

Address: 503-504, 5th Floor, A Wing, Marathon Futurex,
Mafatlal Mills Compound, N.M. Joshi Marg, Lower Parel (East),
Delisle Road, Mumbai –400013

Email: jawahar@glasswallsystem.com

For attention of: Mr. Jawahar Hemrajani

(e) In the case of notices to the **Promoter Group Shareholders:**

Address: 503-504, 5th Floor, A Wing, Marathon Futurex,
Mafatlal Mills Compound, N.M. Joshi Marg, Lower Parel (East),
Delisle Road, Mumbai –400013

Email: jawahar@glasswallsystem.com

For attention of: Mr. Jawahar Hemrajani

14.2 All notices and other communication shall be deemed to have been validly given on (i) the same day if sent by email, (ii) the day of receipt, if sent by courier, or (iii) the expiry of 7 (seven) days after posting, if sent by registered post.

14.3 Any Party may, from time to time, change its address or representative for receipt of notices and other communication provided for or required under this Agreement by giving to all the other Parties not less than 10 (ten) days' prior written notice thereof.

15. EXERCISE OF INVESTORS' RIGHTS

All rights available to the Investors under this Agreement, including the right to issue notices, receive information, granting permissions, etc. may be exercised by the Investor by and under the hand of any of the Investor Director(s) and/or any other authorised representative/signatory nominated by the Investors from time to time.

16. TERMINATION

16.1 This Agreement shall stand terminated upon the Investors and/or their Affiliates ceasing to hold any Securities in the Company.

16.2 The rights and obligations of the Parties under this Agreement, which either expressly or by their nature survive the termination of this Agreement, shall not be extinguished by termination of this Agreement. Without prejudice, for avoidance of doubt it is clarified that the provisions of Clauses 1 (*Definitions and Interpretation*), 7 *(Information Rights, Inspection and Monitoring*), 14 (*Notices*), 17 (*Confidentiality*), 19.9 (*Partial Invalidity*), 19.16 (*Governing Law and Dispute Resolution*), 19.17 (*Representations and Warranties*) and 19.19 (*Public Announcements*) shall survive the termination of this Agreement.

16.3 Termination of this Agreement for any cause whatsoever shall not relieve either Party of any liability, which at the time of termination has already accrued to that Party, or which may, thereafter, accrue in respect of any act or omission prior to such termination.

17. CONFIDENTIALITY

17.1 The Parties agree to hold in confidence all information concerning the business and affairs of the Company ("**Confidential Material**"), and to make available Confidential Material:

(a) to only such officers, employees and representatives (including legal, consultancy, and accounting representatives) as is necessary for the Parties to enter into or perform this Agreement provided that such Persons shall be bound by confidentiality obligations provided for in this Clause 17;

(b) as may be required by applicable Laws or regulations or to comply with the requirements, statutory or judicial or Governmental Authority demands, or receipt of approval of an applicable Governmental Authority in which case such Party shall give at least one (1) day written notice of such disclosure of Confidential Material;

(c) to the extent necessary to comply with the terms of this Agreement or otherwise give effect thereto and the Parties hereby agree that any Shareholder may disclose any information in relation to the Company to a potential purchaser of the Assets and/or Securities of the Company and further agrees that any Shareholder may disclose such information to any potential party to a securitisation or other financing (or its professional advisers), provided that the Shareholder shall obtain appropriate undertakings of confidentiality from such Persons;

17.2 Notwithstanding anything to the contrary contained herein, the Investors will be permitted to share Confidential Material, including the information, inspection and reports provided to the Investors pursuant to Clause 7 (*Information Rights, Inspection And Monitoring*) with (i) funds under the management and advise of MO Alternate Investment Advisors Private Limited and India Business Excellence Management Co. and their respective Affiliates, officers, directors, employees and advisors and investors in such funds; and (ii) any valuation agency conducting valuation of the Investors' portfolio investments and companies.

17.3 This Clause 17 shall remain in effect without limit in time, provided that this Clause 17 shall no longer apply to Confidential Material which (i) is or becomes available to the public as a result of a disclosure by the Company, (ii) was known to the Parties on a non-confidential basis prior to its disclosure by the Company, or (iii) becomes available to the Parties on a non-confidential basis from a source (not bound by confidentiality provisions) other than the Company or its representatives or agents.

18. MANAGEMENT IN SITUATION OF CAUSE OR DISABILITY

18.1 In the event of happening of a Cause or Disability the Promoter (or his successors as the case may be) will suggest to the Investors a succession plan. In the event the succession plan is not acceptable to the Investors, and the Promoter and the Investors are not able to mutually resolve the matter within a period of 15 days of commencement of such discussions, the Promoter and the Investors shall resolve the matter through a "Special Deadlock" resolution mechanics set out in this Clause.

18.2 The Special Deadlock resolution mechanics will involve the appointment of one representative each, one by the Promoter and one by the Investors and the two representatives so appointed shall suggest the manner in which the Company should be managed, which shall be binding on the Parties. In the event the two representatives are unable to arrive at a consensus, a third representative shall be appointed jointly by the two representatives and the decision of the majority of the representatives shall be binding on the Parties. The Promoter and the Investors shall appoint the representatives within 15 (fifteen) days of the request. The representatives would arrive at a decision within a period of 2 (two) months from the date of their appointment.

18.3 Definitions. For purposes of this Clause 18, the following terms shall have the meanings ascribed to them below:

"**Cause**": a conviction of or entering a plea of guilty of the Promoter to (i) any criminal offence or (ii) his wilful violation of any law, rule or regulation (other than a traffic violation or similar offense or violation outside of the course of employment which in no way adversely affects the Company or its reputation or the ability of the Promoter to perform his employment-related duties or to represent the Company).

"**Disability**" or "**Disabled**": means the Promoter's incapacity due to reasonably documented illness or an unforeseen event, the Promoter shall have been unable for more than 12 weeks period to perform his duties with the Company on a full-time basis.

19. MISCELLANEOUS PROVISIONS

19.1 Further Rights Issuance

It is agreed between the Parties that in the event of the Company making a future issuance of Shares on a rights issue to the members of the Company, the Investors shall be entitled to participate in such rights issuance by the Company in proportion to the shareholding of the Investors on a Fully Diluted Basis, and where the Investors hold such Shares, unless otherwise agreed by the Investors in writing, all the rights of the Investors in respect of the Investor Securities shall also be available to the Investors in respect of such Shares, other than (a) Event of Default exit pursuant to the proviso to Clause 13.2(c)(i), it being clarified that the exit applicable in such case for Clause 13.2(c)(i) is being clarified that the obligations of buy-back and Promoter put in respect of such Shares shall be exercised at FMV, or as may be otherwise mutually decided between the Promoter, the Company and the Investors, (c) for the purpose of a Tag Along Right of the Investors under Clause 8.4 other than the right to Tag Along pursuant to Clause 8.4(i), and (d) for the gross-up indemnity provided to the Investors under Clause 16.9 of the Erstwhile IA to the extent of the rights issuance securities.

19.2 Fall Away of Rights

The rights available and the obligations applicable, to the Investors and the obligations of the Company and the Promoter pursuant to the provisions of this Agreement shall continue to be available or, as the case may be, applicable to the Investors and/or their Affiliates till such time as the Investors and/or their Affiliates collectively own any Securities in the Company.

Provided that in the event the Investors in aggregate hold 3.25% Three Point two five per cent) or lower of the Equity Share capital of the Company on a fully diluted basis:

(a) on account of a dilution arising by fresh issuances of securities where the Investors have not transferred any Investor Securities, then in such an event the following rights of the Investors would continue:

(i) information rights under Clause 7 (*Information Rights, Inspection and Monitoring*); (ii) pre-emptive rights under Clause 9.4; (iii) a right to offer for sale any securities held by the Investors in any IPO, if any IPO is conducted by the Company; and (iv) Investors' right to sell its Securities; or

(b) on account of Transfer of such Shares by the Investors and/or their Affiliates, then in such an event the following rights of the Investors would continue:

(i) information rights under Clause 7 (*Information Rights, Inspection and Monitoring*); (ii) a right to offer for sale any securities held by the Investors in any IPO, if any IPO is conducted by the Company; and (iii) pre-emptive rights under Clause 9.4.

Apart from the above, all rights and obligations of the Parties under this Agreement shall cease.

19.3 **Rights of Investors in subsidiaries**

The Parties have agreed that the rights of the Investors set out in this Agreement shall also extend to the wholly owned subsidiaries of the Company as created in the future. The Parties have further agreed that in case of subsidiaries / joint venture companies other than wholly owned subsidiaries, if the Company has right to appoint only two directors on such a subsidiary or joint venture company, the Company will have a right to nominate such director(s) which will be decided by the Promoter and such nominees need not include a nominee of the Investors and if the Company has right to appoint three or more directors on such subsidiary or joint venture company, the Company shall also, if required by the Investors appoint one director on the board of such subsidiary or joint venture company as decided by the Investors. Further in relation to any matters decided by such subsidiary or joint venture company, which is in the nature of a Reserved Matter under this Agreement, then in such an event, if the Company has a say on such matter, such matter shall not be decided without the prior consent of the Investors. The Promoter and the Company shall procure that the subsidiaries act in accordance with the Transaction Documents. It is clarified that the Investors shall not be required to hold any shares of the subsidiaries. The Promoter and the Company shall exercise all their rights in relation to wholly owned subsidiaries so as to ensure that the rights of the Investors in respect of the wholly owned subsidiaries are fully given effect to. The Promoter shall ensure that any matter proposed by the Investors shall be placed on the agenda of any meeting of the board of directors or shareholder meeting of subsidiaries of the Company.

19.4 **Representative of Promoter and the Promoter Group Shareholders**

For the purposes of the Transaction Documents, the Promoter Group Shareholders hereby irrevocably appoint the Promoter to represent them with respect to all actions and decisions to be taken by or on behalf of each the Promoter Group Shareholders. Accordingly, all the Promoter Group Shareholders hereby authorize the Promoter to represent the Promoter and the Promoter Group Shareholders and take any decision which may be required to be taken, do all acts and execute all documents and writings which are or may be required by any of the Promoter Group Shareholders for the proper and effective fulfilment of their respective rights and obligations under the Transaction Documents. Any action taken or deed performed or document executed by the Promoter shall be deemed to be acts or deeds done or documents executed by all the Promoter Group Shareholders (as the case may be), and shall be binding on all the Promoter Group Shareholders (as the case may be) and shall be ratified by them without any demur or protest.

19.5 **Obligations of the Promoter Group Shareholders**

The Parties agree and acknowledge that the Promoter Group Shareholders shall have no obligations under this Agreement other than as specifically provided under this Agreement (including as a part of the Promoter Group), and (a) obligations undertaken under Clause 5, Clause 6 and Clause 8 (other than Clause 8.5) and (b) obligations in relation to aspects where they are required to vote as a Shareholder (as defined hereinafter) and the Promoter Group Shareholders shall vote accordingly to give effect to the provisions of this Agreement.

19.6 **Time of Essence**

The Parties agree that time is of the essence with respect to the performance of the provisions of the Transaction Documents.

19.7 **Reservation of Rights**

No forbearance, indulgence or relaxation or inaction by any Party at any time to require performance of any of the provisions of this Agreement shall in any way affect, diminish or prejudice the right of such Party to require performance of that provision, and any waiver or acquiescence by any Party of any breach of any of the provisions of this Agreement shall not be construed as a waiver or acquiescence of any continuing or succeeding breach of such provisions, a waiver of any right under or arising out of this Agreement or acquiescence to or recognition of rights other than that expressly stipulated in this Agreement.

19.8 **Cumulative Rights**

All remedies of either Party under this Agreement whether provided herein or conferred by statute, civil law, common law, custom or trade usage, are cumulative and not alternative and may be enforced successively or concurrently.

19.9 **Partial Invalidity**

If any provision of this Agreement or the application thereof to any Person or circumstance shall be invalid or unenforceable to any extent, the remainder of this Agreement and the application of such provision to Persons or circumstances other than those as to which it is held invalid or unenforceable shall not be affected thereby, and each provision of this Agreement shall be valid and enforceable to the fullest extent permitted by applicable Law. Any invalid or unenforceable provision of this Agreement shall be replaced with a provision, which is valid and enforceable and most nearly reflects the original intent of the unenforceable provision.

19.10 **Amendments**

No modification or amendment of this Agreement and no waiver of any of the terms or conditions hereof shall be valid or binding unless made in writing and duly executed by the Parties.

19.11 **Further assurances**

The Parties to this Agreement shall from time to time execute and deliver all such further documents and do all acts and things as the other Parties may reasonably require to effectively carry on the full intent and meaning of this Agreement and to complete the transactions contemplated hereunder.

19.12 **No Assignment**

This Agreement and the rights and liabilities hereunder shall bind and inure to the benefit of the respective successors of the Parties. The Promoter, Promoter Group Shareholders and/or the Company shall not assign or Transfer their respective rights, obligations and liabilities hereunder to any other Person. It is further agreed that the Investors shall be entitled to assign in full or in part all its rights and obligations hereunder, without the consent of the other Parties to such parties to whom the Investors are entitled to Transfer the Investor Securities under the provisions of this Agreement. Notwithstanding anything else mentioned herein, no assignment of any such rights shall be factored without an underlying transfer of the Securities. Further, such assignment will not result in divisibility of rights and multiplicity of benefits. Further, any assignment by the Investors to any

Competitor shall be subject to Clause 12.8 above.

19.13 **Entire Agreement**

The Transaction Documents constitute the entire agreement between the Parties with respect to the subject matter therein and supersede and cancel any prior oral or written agreement, representation, understanding, arrangement, communication or expression of intent relating to the subject matter of the Transaction Documents.

19.14 **Relationship**

None of the provisions of this Agreement shall be deemed to constitute a partnership between the Parties and no Party shall have any authority to bind the other Party otherwise than under this Agreement or shall be deemed to be the agent of the other in any way.

19.15 **Liquidation Preference**

In the event there occurs a liquidation of the Company, then the total proceeds from such liquidation after discharging or making provision for discharging the liabilities of the Company towards secured creditors, unsecured creditors (other than Promoter and Promoter Group Shareholders) and statutory dues shall be distributed:

(i) first to the Investors on a *pro rata* basis among themselves, an amount which shall be the higher of (**"Contractual Liquidity Amount"**):

(A) 1.15 times the aggregate of the IBEF II Investment Amount and IBEF IIA Investment Amount; or

(B) an amount which would be distributed to the Investors if all amounts available for distribution among the Shareholders including the Investors in proportion to the Securities held by them on a Fully Diluted Basis.

(ii) second, to all the Shareholders of the Company, pro rata among themselves.

To enable the parties to enforce the provision of Clause 19.15(i) above, the Parties shall follow such mechanism as the Investors' advisors may recommend at such time.

19.16 **Governing Law and Dispute Resolution**

(a) If any dispute arises between the Investors on the one hand and any or all of the Company, Promoter and Promoter Group Shareholders on the other hand, during the subsistence of the Transaction Documents or thereafter, in connection with or arising out of the validity, interpretation, implementation or alleged breach of any provision of the Transaction Documents or regarding a question, including the question as to whether the termination of any of the Transaction Documents by any Party has been legitimate, the disputing Parties shall endeavour to settle such dispute amicably, and the same shall in the first instant be resolved through mediation. The attempt to bring about an amicable settlement is considered to have failed as soon as one of the disputing Parties, after reasonable attempts, which attempt shall continue for not less than 30 (thirty) days, gives 15 (fifteen) days' notice thereof to the other disputing Parties in writing.

(b) In case of such failure, the dispute shall be referred to a sole arbitrator to be mutually appointed by the Promoter, the Promoter Group Shareholders, the Company and the Investors within 5 (five) days from the expiry of the said 15 (fifteen) days' notice or in case of disagreement as to the appointment of the sole arbitrator, to 3 (three) arbitrators, the Investors nominating one arbitrator and the Promoter, Company and the Promoter Group Shareholders jointly appointing the second arbitrator, who shall both be appointed within further 15 (fifteen) days from the expiry of the said 5 (five) days' period. The third arbitrator shall be appointed by the two arbitrators so appointed within 15 (fifteen) days of their appointment. The arbitration proceedings shall be governed by the (Indian) Arbitration and Conciliation Act, 1996.

(c) The place of the arbitration shall be Mumbai, India.

(d) The proceedings of arbitration shall be in the English language.

(e) The arbitrator's award shall be substantiated in writing. The arbitral tribunal shall also decide on the costs of the arbitration proceedings. In the meanwhile, the Parties will bear the cost of the third arbitrator and arbitration meetings and venue equally.

(f) The award shall be binding on the Parties subject to the applicable Laws in force and the award shall be enforceable in any competent court of law.

(g) The terms of the arbitration will require the arbitrators to conclude the arbitration within 120 (one hundred and twenty) days of the date of reference of the dispute to arbitration.

(h) This Agreement shall be governed and construed in accordance with the Laws of India and subject to the provisions of arbitration as set out above, the courts at Mumbai, India will have exclusive jurisdiction.

(i) For avoidance of doubt, it is clarified that nothing in this Clause 19.16 shall apply to disputes inter-se between the Company, Promoter and the Promoter Group Shareholders.

19.17 **Representations and warranties**

Each Party represents to the other Parties hereto that:

(a) Such Party has the full power and authority to enter into, execute and deliver this Agreement and to perform its obligations and the transactions contemplated hereby and, if such Party is not a natural Person, such Party is duly incorporated or organised and validly existing under the Laws of the jurisdiction of its incorporation or organization, having full power and authority to enter into and perform its obligations under this Agreement.

(b) The execution and delivery by such Party of this Agreement and the performance by such Party of its obligations and the transactions contemplated hereunder has been duly authorised by all necessary corporate or other action of such Party.

19.18 **Costs**

The Company shall bear all expenses incurred in preparing this Agreement including the stamp duty payable on this Agreement, and any other costs contemplated by this Agreement, unless specifically required under this Agreement to be borne by any other Person.

19.19 **Public Announcements**

(a) No formal or informal public announcement or press release which makes reference to any Party and/or the terms and conditions of the Transaction Documents or any of the matters referred to herein, shall be made or issued by or on behalf of any other Party without the prior written approval of all the other Parties provided that if any Party is obliged to make or issue any announcement or press release required by applicable Law or by any Stock Exchange or Governmental Authority, it shall give the other Parties every reasonable opportunity to comment on any announcement or release before it is made or issued.

(b) The Company, the Promoter Group Shareholders and the Promoter undertake to the Investors that they shall not:

(i) use the name of the Investors or any of its Related Parties in any context whatsoever (except as required by applicable Law or as permitted under this Agreement); and

(ii) hold themselves out as being associated with the Investors or any of their Related Parties in any manner whatsoever without the prior written consent of the Investor, save and except a mention about the investment made by the Investors in the Company.

19.20 **Execution in Counterparts**

This Agreement may be executed in three or more counterparts, each of which shall be deemed an original and all of which, taken together, shall constitute one and the same instrument.

19.21 **Authorisation**

The Persons signing this Agreement on behalf of the Parties represent and covenant that they have the authority to so sign and execute this document on behalf of the Parties for whom they are signing.

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SCHEDULE 1
PROMOTER GROUP SHAREHOLDERS

SL. NO.	NAME OF THE PROMOTER GROUP SHAREHOLDERS	CONSTITUTION	ADDRESS
1.	Mrs. Vinne Hemrajani	Individual	B-2702, Plot No.5, Tharwani Heights, Sector 18, Palm Beach Road, Sanpada, Navi Mumbai, Thane 400705.
2.	Mr. Eshan Hemrajani	Individual	B-2701-2702, Plot No.5, Tharwani Heights, Sector 18, Palm Beach Road, Sanpada, Navi Mumbai, Thane 400705.
3.	Mr. Eshan Hemrajani jointly with Mrs. Dikshita Achanna Hemrajani	Individuals	B-2701-2702, Plot No.5, Tharwani Heights, Sector 18, Palm Beach Road, Sanpada, Navi Mumbai, Thane 400705.
4.	Mr. Amit Hemrajani	Individual	B-2702, Plot No.5, Tharwani Heights, Sector 18, Palm Beach Road, Sanpada, Navi Mumbai, Thane 400705.

SCHEDULE 2
SHAREHOLDING STRUCTURE

SHAREHOLDING PATTERN OF THE COMPANY AS ON EXECUTION DATE

NAME OF SHAREHOLDER	NUMBER OF EQUITY SHARES	SHAREHOLDING PERCENTAGE ON A FULLY DILUTED BASIS
INVESTORS		
IBEF II	17,00,845	11.2
IBEF IIA	43,73,604	28.8
PROMOTER		
Mr. Jawahar Hemrajani	62,89,464	41.42
PROMOTER GROUP SHAREHOLDERS		
Mrs. Vinne Hemrajani	73,871	0.49
Mr. Eshan Hemrajani	8,89,583	5.86
Mr. Eshan Hemrajani jointly with Mrs. Dikshita Achanna Hemrajani	9,71,912	6.40
Mr. Amit Hemrajani	8,85,046	5.83
Total	**1,51,84,325**	100%

Note: With effect from June 13, 2024, the differential dividend rights accruing to the holders of the Class B Equity Shares have automatically ipso facto fallen away, and the Class B Equity Shares are recognized as Equity Shares and treated pari-passu with existing Equity Shares. Further, the reclassification of Class B Equity Shares as Equity Shares was approved by the members at the extraordinary general meeting of the Company convened on 11th July, 2024, the Company shall file Form SH-7 with the Registrar of Companies in relation to the above, and surrender the ISIN of Class B Equity Shares such that all erstwhile Class B Equity Shares shall be reclassified under the same ISIN as all Equity Shares of the Company.

SCHEDULE 3

RESERVED MATTER ITEMS

(a) Approval of the annual budget including Business Plan or any alteration in the Business Plan;

(b) Approval of annual accounts of the Company;

(c) Any addition/deletion to the off-balance sheet liability structure of the Company including leasing, drawing on bank guarantees, Encumbrances, pledge or creation of lien and/or Transfer, which are not in the Ordinary Course of Business and exceeding a value which individually is more than or equal to Rs. 20,00,000 (Rupees Twenty Lakhs only) or together is more than Rs. 1,50,00,000 (Rupees One Crore fifty lakhs only) in a Financial Year (as per the written down value of the Assets as per the audited accounts of the previous Financial Year);

(d) Change in any rights or benefits provided to the Investors;

(e) Any changes to the Memorandum and Articles;

(f) Creation of any new subsidiary(ies), joint ventures associate companies of the Company;

(g) Change in the name or registered office of the Company;

(h) Any transactions in relation to new activities with a Related Party of a value above Rs. 20,00,000 (Rupees Twenty lakhs only) singly and Rs. 1,50,00,000 (Rupees One Crore fifty lakhs only) in the aggregate in a Financial Year other than as described in the **Schedule 12** hereto,

(i) Any change in the capital structure including Share capital/ future issuances of Securities/ redemption of Securities/capital reduction / ESOP (other than the ESOP plan envisaged in this Agreement) and/or any Transfer of Securities, other than as explicitly permitted under this Agreement;

(j) Change in the composition or size or structure of the Board;

(k) Mergers, consolidation, acquisitions strategic/financial alliances by and of the Company, change of voting control, amalgamations, consolidations, spin-offs, sale of substantial Assets, insolvency, voluntary liquidation, winding up, compromise with creditors, other similar or related actions, either by or of the Company;

(l) Listing, buy-back, distribution of dividend, distribution of profits / commission other than dividend relating to any Securities;

(m) Appointment/addition, dismissal, removal in the statutory auditors, internal auditors and Key Management Persons other than as agreed in this Agreement;

(n) Any deviations of more than 10% (Ten percent) from the Business Plan approved in accordance with this Agreement and any deviation of more than 10% (Ten percent) from annual budget under major heads including revenues, direct costs including material and labour cost, employee cost, net working capital and debt equity ratio;

(o) Availing of or providing guarantees and credit enhancements (other than in the Ordinary Course of Business) and entering into any derivative contracts which are not already incorporated in the annual budget approved by the Investors;

(p) Purchase/disposal of fixed Assets for a consideration exceeding Rs 10,000,000 (Rupees One Crore only) or disposal of fixed Assets with a written down value exceeding Rs 10,000,000 (Rupees One Crore only) at the commencement of the relevant Financial Year other than Specific Properties

(q) Changes to accounting or Tax policies or practices of the Company (other than those mandated by Indian GAAP);

(r) Acquire or Transfer or otherwise dispose off any Intellectual Property rights of or used by the Company where the transaction involves a sum in excess of Rs. 10,00,000 (Rupees Ten Lakh only);

(s) Change in the nature of Company's Business or entering into any new business line or activity or in any way undertaking any new business initiative related to the Business, exceeding a sum of more than Rs 3,00,00,000 (Rupees Three Crore) either singly or in the aggregate in a Financial Year, which does not fall in the scope of the Company's operations as per the Business Plan, whether connected to the then Business operations or otherwise;

(t) Entering into, modification or termination of any material contract in existence or proposed to be entered into by the Company and including waiver of any material default under or in relation to the breach of any material contract, other than in the Ordinary Course of Business;

(u) Commencement or settlement/withdrawal of any litigation(s) (i) other than in the Ordinary Course of Business or (ii) in the Ordinary Course of Business and involving an aggregate sum in excess of Rs. 10,00,000 (Rupees Ten Lakh only) per litigation;

(v) Entering into any arrangement or settlement with the debtors or creditors other than in the Ordinary Course Of Business;

(w) Change in the remuneration or material terms of employment of the Promoter (other than as specifically agreed in the Transaction Documents); and Key Management Persons.

SCHEDULE 4
DEED OF ADHERENCE

THIS DEED OF ADHERENCE ("**Deed**") is made on [•] (*insert date*)

by [•] (*insert name*) (the "**Covenantor**");

The Persons listed in Annexure annexed hereto (hereinafter referred to as the "**Continuing Shareholder/s**")

[•] (the "**Company**");

[•] (hereinafter referred to as the ["**Transferring Shareholder**]")

(The Company and the Continuing Shareholders and the [Transferring Shareholder/Issuer] are hereinafter referred to individually as "**Original Party**" and collectively as the "**Original Parties**". The Original Parties and the Covenantor are collectively referred to as "**Parties**" and individually as "**Parties**".)

SUPPLEMENTAL to an Amended and Restated Investment Agreement dated [•] and made between [•] (the "**Company**"), the Investors, the Promoter and the Promoter Group Shareholders (as such terms are defined in the Investment Agreement), (the "**Agreement**").

WHEREAS:

The Covenantor covenants as follows:

1. The Covenantor hereby confirms that a copy of the Agreement has been made available to it and hereby covenants with the Company and the Continuing Shareholders to observe, perform and be bound by all the terms which are capable of applying to the Covenantor and the Covenantor shall be deemed to be a shareholder of the Company with effect from the date on which the Covenantor is registered as a member of the Company and to be a party to the Agreement (as if named a party to the Agreement).

2. The Covenantor hereby covenants that it shall do nothing that derogates from the provisions of the Agreement. The Covenantor agrees to be bound by the obligations and shall be entitled to the rights, in relation to the Company, of the entity from whom the Covenantor has acquired the Securities of the Company as set out in the Agreement.

3. The Covenantor represents and warrants to the Original Parties that the execution of this Deed by it has been duly authorized, and that the execution and performance of this Deed does not conflict with or result in a breach of any of the terms, conditions or provisions of, or constitute a default or require any consent under, any agreement or other instrument it has executed or by which it is bound, or violate any of the terms and provisions of its charter documents or any judgment, decree or order or any statute, rule or regulation applicable to it.

4. All notices, requests, waivers and other communications ("**Notices**") shall be made in writing and by letter (delivered by hand, courier or registered post), email or facsimile transmission and shall be deemed to be duly given or made, in the case of personal delivery, when delivered; in the case of email/ facsimile transmission, provided that the sender has received a receipt indicating proper transmission, when dispatched. When by way of a letter, the Notice must be in writing in English and addressed to the Covenantor at the address set out below, when by email must be in English

to the email address set out below, and when by facsimile must be in English to the number set out below

In the case of notices to the **Covenantor**:

Address: [•]
Phone : [•]
Fax : [•]
Email : [•]
Attention: [•]

5. The Notice must be signed by a Person duly authorized by the sender. If delivery or receipt occurs on a day other than a Business Day, or is later than 5 p.m. (local time), it will be taken to have been duly given at the commencement of the next Business Day. In the event that the Covenantor refuses delivery or acceptance of a notice, request or other communication, under the Agreement, it shall be deemed that the Notice was given upon proof of the refused delivery, provided the same was sent in the manner specified in the Agreement.

6. This Deed of Adherence shall be governed in all respects and construed in accordance with the Laws of India and the terms of the Agreement (including without limitation the dispute resolution mechanism) shall be *mutatis mutandis* be applicable to this Deed. All capitalised terms used in this Deed of Adherence but not defined herein, shall, unless repugnant to the context or meaning, have the meaning ascribed to such terms under the Agreement.

ANNEXURE CONTINUING SHAREHOLDERS

Executed as a DEED the day and year first before written.

For the Covenantor

____

By: [•] (*insert name*)

Title: [•] (*insert title*)

For the Continuing Shareholders

____

By: [•] (*insert name*)

Title: [•] (*insert title*)

____

By: [•] (*insert name*)

Title: [•] (*insert title*)

For the Transferring Shareholder

____

By: [•] (*insert name*)

Title: [•] (*insert title*)

For the Company

____

By: [•] (*insert name*)

Title: [•] (*insert title*)

SCHEDULE 5

TERMS OF CLASS B EQUITY SHARES

1. Coupon

On each Class B Equity Share, an Investor shall be entitled to payment of 2% (two percent) coupon per annum on the subscription price thereof paid by the Investor, which coupon has accrued till the month of June, 2024.

2. Dividend

In addition to the coupon, on each Class B Equity Share, an Investor shall have the right to participate in ordinary dividend.

3. Voting Rights

The Class B Equity Shares shall carry the same voting rights as the Equity Shares.

4. Fall away of differential rights

The differential rights accruing to an Investor under the Class B Equity Shares shall automatically and *ipso facto* fall away either (i) upon the Company getting listed on a recognized stock exchange, at any time, or (ii) at the end of 10 years from the Closing Date (as defined in the Erstwhile IA) or at any time at the option of the Investor, whichever is earlier, and then the Class B Equity Shares shall be treated *pari passu* with Equity Shares. The shareholding of the Company, post such fall away of rights, is set out in **Schedule 2**. It is clarified that all coupon accrued to an Investor till June 2024 as per paragraph 1 above shall be payable to such Investor irrespective of the fall away of differential rights as per this paragraph 4.

5. Miscellaneous

(a) The Investors' shareholding percentage in the Equity Share capital shall be computed taking into account the Equity Shares and Class B Equity Shares held by them.

(b) The Company will not, by amendment of its Articles or through any reorganization, recapitalization, transfer of assets, consolidation, merger, dissolution, issue or sale of securities or any other voluntary action, avoid or seek to avoid the observance or performance of any of the terms to be observed or performed hereunder by the Company, but will at all times in good faith assist in the carrying out of all the provisions herein and in the taking of all such action as may be necessary.

SCHEDULE 6

ANTI DILUTION ENTITLEMENT

New Conversion Price for IBEF II Investment Amount or IBEF IIA Investment Amount ("**NCP**") = IA/E * ((A+B) / (A+C))

Anti-dilution number of Shares to be received by the relevant Investor ("**ADS**") =

(IA/NCP)-E

IA = IBEF II Investment Amount or IBEF IIA Investment Amount
E = Aggregate of Investor Securities held by such Investor
A = Equity Shares outstanding on a Fully-Diluted Basis prior to the Dilutive Issuance
B = Equity Shares issuable (on a Fully-Diluted Basis) if the Dilutive Issuance has been made at the price as determined in Schedule 5
C = Equity Shares issued (on a Fully-Diluted Basis) at the Dilutive Issuance price

All calculations of the ADS shall be made to the nearest whole number. The Company shall not issue any fractional Equity Shares, and any fractions shall be rounded up to a whole number.

SCHEDULE 7

DIVIDEND POLICY

1. **Distribution of Dividend:** The Company shall make such payments to the Shareholders of the Company (including to the Investors in respect of the Investors Securities) as declared by the Board from time to time in accordance with the dividend policy as enumerated below.

2. **Distribution of dividend to the Investors:** The Company shall ensure that the dividend on the Investors Securities is determined on a basis which ensures that the Investors receive dividend on the Investors Securities had the Investors Securities be deemed to have been converted into Equity Shares.

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SCHEDULE 8

ANTI-CORRUPTION GUIDELINES

The purpose of these guidelines is to clarify the meaning of the terms "Corrupt Practices", "Fraudulent Practices", "Coercive Practices", "Collusive Practices" and "Obstructive Practices" in the context of Company's operations.

1. Corrupt Practices

A "Corrupt Practice" is the offering, giving, receiving or soliciting, directly or indirectly, of anything of value to influence improperly the actions of another party.

Interpretation

A. Corrupt practices are understood as kickbacks and bribery. The conduct in question must involve the use of improper means (such as bribery) to violate or derogate a duty owed by the recipient in order for the payer to obtain an undue advantage or to avoid an obligation. Antitrust, securities and other violations of law that are not of this nature are excluded from the definition of corrupt practices.

B. It is acknowledged that foreign investment agreements, concessions and other types of contracts commonly require investors to make contributions for bona fide social development purposes or to provide funding for infrastructure unrelated to the project. Similarly, investors are often required or expected to make contributions to bona fide local charities. These practices are not viewed as Corrupt Practices for purposes of these definitions, so long as they are permitted under local law and fully disclosed in the payer's books and records. Similarly, an investor will not be held liable for corrupt or fraudulent practices committed by entities that administer bona fide social development funds or charitable contributions.

C. In the context of conduct between private parties, the offering, giving, receiving or soliciting of corporate hospitality and gifts that are customary by internationally-accepted industry standards shall not constitute corrupt practices unless the action violates applicable law.

D. Payment by private sector persons of the reasonable travel and entertainment expenses of public officials that are consistent with existing practice under relevant law and international conventions will not be viewed as Corrupt Practices.

E. The World Bank Group does not condone facilitation payments. For the purposes of implementation, the interpretation of "Corrupt Practices" relating to facilitation payments will take into account relevant law and international conventions pertaining to corruption.

2. Fraudulent Practices

A "Fraudulent Practice" is any action or omission, including misrepresentation that knowingly or recklessly misleads, or attempts to mislead, a party to obtain a financial or other benefit or to avoid an obligation.

Interpretation

A. An action, omission, or misrepresentation will be regarded as made recklessly if it is made with reckless indifference as to whether it is true or false. Mere inaccuracy in such information, committed through simple negligence, is not enough to constitute a "Fraudulent Practice" for purposes of this Agreement.

B. Fraudulent Practices are intended to cover actions or omissions that are directed to or against a World Bank Group entity. It also covers Fraudulent Practices directed to or against a World Bank Group member country in connection with the award or implementation of a government contract or concession in a project financed by the World Bank Group. Frauds on other third parties are not condoned but are not specifically sanctioned in IFC, MIGA, or PRG operations. Similarly, other illegal behaviour is not condoned, but will not be considered as a Fraudulent Practice for purposes of this Integrity Policy.

3. Coercive Practices

A "Coercive Practice" is impairing or harming, or threatening to impair or harm, directly or indirectly, any party or the property of the party to influence improperly the actions of a party.

Interpretation

A. Coercive Practices are actions undertaken for the purpose of bid rigging or in connection with public procurement or government contracting or in furtherance of a Corrupt Practice or a Fraudulent Practice.

B. Coercive Practices are threatened or actual illegal actions such as personal injury or abduction, damage to property, or injury to legally recognizable interests, in order to obtain an undue advantage or to avoid an obligation. It is not intended to cover hard bargaining, the exercise of legal or contractual remedies or litigation.

4. Collusive Practices

A "Collusive Practice" is an arrangement between two or more parties designed to achieve an improper purpose, including to influence improperly the actions of another party.

Interpretation

Collusive Practices are actions undertaken for the purpose of bid rigging or in connection with public procurement or government contracting or in furtherance of a Corrupt Practice or a Fraudulent Practice.

5. Obstructive Practices

An "Obstructive Practice" is (i) deliberately destroying, falsifying, altering or concealing of evidence material to the investigation or making of false statements to investigators, in order to materially impede a World Bank Group investigation into allegations of a corrupt, fraudulent, coercive or collusive practice, and/or threatening, harassing or intimidating any party to prevent it from disclosing its knowledge of matters relevant to the investigation or from pursuing the investigation, or (ii) acts intended to materially impede the exercise of Investors access to contractually required information in connection with a World Bank Group investigation into allegations of a corrupt, fraudulent, coercive or collusive practice.

Interpretation
Any action legally or otherwise properly taken by a party to maintain or preserve its regulatory, legal or constitutional rights such as the attorney-client privilege, regardless of whether such action had the effect of impeding an investigation, does not constitute an Obstructive Practice.

General Interpretation

A person should not be liable for actions taken by unrelated third parties unless the first party participated in the prohibited act in question.

SCHEDULE 9

RECOMMENDATIONS OF ENVIRONMENT AND SOCIAL DUE DILIGENCE REPORT

Environmental and Social Action Plan

Key Areas	Key Corrective Actions	Measurable Outcomes	Refere n ce in PS Table	Indicative Timelines	Implementat ion Role
A. Corrective actions to be taken up on priority					
Corporate Level	Amendment in Registration under Shop and Establishments Act for inclusion of 103 employees;	Amended Shop and Establishment Certificate	Section 1.3	Within 2 month Application to be made prior to disbursement	GWS management
Existing Ambernath Facility	Updated Consent to Operate. capturing all activities including DG set, hazardous waste etc.* *** It was informed that GWS has submitted the application for renewal of CTO immediately after site visit without including DG set and hazardous wastes.**	Updated Consent to Operate including: - DG set; - Empty sealant catalyst containers as hazardous waste; - Inclusion of sealant residues (if found hazardous after detailed chemical analysis)	Section 1.3	Three months for determining the chemical nature of sealants used onsite and applying for amendment in CTO.	GWS management, EHS manager
	Obtain a Principal Employer Certificate under the Contract Workers (Regulation and Abolition) Act, 1970	Principal Employer certificate of registration	Section 1.3	Within 2 month. Application to be made prior to disbursement	GWS management

Key Areas	Key Corrective Actions	Measurable Outcomes	Reference in PS Table	Indicative Timelines	Implementation Role
Proposed Ambernath Facility	-The company will not initiate any site level work unless it received all necessary permits, approvals and NOCs from relevant authorities.	Valid permits, NOCs, license etc.	Section 1.3	Permits, NOCs, Licenses - prior to initiating relevant activity at new proposed facility	CEO and project head

Installation project sites	**Installation Project Sites** GWS to obtain a contract labour license under the Contract Workers (Regulation and Abolition) Act, 1970* Obtain a certificate of registration under the Building and Other Construction Work (Regulation and Employment and Conditions of Service) Act, 1996. *It was observed during visit to World One site that there was delay in receiving Form-V from the Project developer and as GWS has recently received Form-V, it is in the process of submitting an	Contract Labour License and Certificate of Registration under the Building and Other Construction Work (Regulation and Employment and Conditions of Service) Act, 1996, if applicable for site	Section 1.3	Submission of application for License and Certificate of Registration within 2 weeks from receipt of Form-V from Principal Employer. For all operational project sites, in addition to above two approvals, other necessary registration/certification/licenses will be secured, as and when applicable. For all new sites GWS will ensure that such Work Orders for mobilization are through written or electronic communication. GWS will take following steps with regard to the process of obtaining licence to employ contract labours in its site-work: a. Post receipt of the work order, GWS to issue a notice to the Principal Employer requesting issuance for Form-V at least 15 days prior to initiating work on site; b. Thereafter GWS will once in every fortnight after issuance of notice,	GWS management and respective site/project heads
Key Areas	**Key Corrective Actions**	**Measurable Outcomes**	**Reference in PS Table**	**Indicative Timelines**	**Implementation Role**
	application for the licence.			follow-up in writing with the	

	It was reported by GWS that they are often directed to initiate the work at site by Builders. GWS mostly uses sub-contractors to supply labour to carry out the on-site installation works. The process of registration under Contract Labour Act and to obtain the certificates/Licences runs in parallel.			Principal Employer for Form-V; c. GWS to ensure that GWS or its sub-contractors as the case may be, should get the contract labour license within 2 months of the receipt of Form-V; d. GWS to stop the work at site post 2 months if the contract labour license is not received. GWS will also intimate the Principal Employer regarding stoppage of work. GWS will not engage on a third assignment with those principal employers, who in past two assignments did not provide documents that it requested in writing (such as Form-V) required to ensure compliance to applicable labour statutes.	
	GWS should seek a declaration from their sub-contractors on engaging interstate migrant workers as part of their contract document. The contract document should specify that the obligations	Declaration from Sub contractor on engagement of interstate migrant workers	Section 1.3	Prior to initiation of construction work	GWS management
Key Areas	**Key Corrective Actions**	**Measurable Outcomes**	**Reference in PS Table**	**Indicative Timelines**	**Implementation Role**

	under the Inter State Migrant Workers Act will be met by the sub-contractor, if applicable. The contract agreement will also include clause for action to be taken in case of violation.				
Legal Register	Prepare a Legal Register to keep a track of the validity of existing licenses and applicability of any additional regulations. The regulatory compliance requirements of permits obtained should also be a part of this register. A document pertaining to legal register was shared with ERM dated 20.03.2014 which indicates that GWS had started process of preparing legal register.	Legal Register	Section 1.3	Within 1 month	GWS management
B. Other corrective actions					
Corporate Level					
EHSMS policy	Company will formulate and implement a corporate EHSMs	• Updated corporate policy		2 months from disbursement	MD/CEO signoff on new policy statements

Key Areas	Key Corrective Actions	Measurable Outcomes	Reference in PS Table	Indicative Timelines	Implementation Role
	policy/upgrade existing policy to include the following- - For any construction/work site, GWS will undertake necessary regulatory processes to secure all statutory approvals and licenses including contract labour license from the labour commissioner. -company will not use the services of subcontractors who violate any labour law -Vertigo test of all workers, including that of contractors, who are required to work at height shall be mandatory prior to site mobilization.				
Management Systems	The existing management systems to be upgraded to include • Monitoring mechanism for tracking regulatory compliance	• Updated management system;	Section 1.1, 1.3, 1.5	Within 4 months	GWS management with aid of external consultant.

Key Areas	Key Corrective Actions	Measurable Outcomes	Reference in PS Table	Indicative Timelines	Implementation Role
	requirements (Environment, labour and Health and safety) for GWS and their contractors; • Grievance redressal system; • Procedures and safety standards such that the upgraded system is certifiable to OHSAS 18001 for all site/project work company undertakes and its current activities at fabrication unit.				
HR Manual	Develop the HR manual that is under preparation to cover aspects such as clear policies on leave, overtime, retrenchment, promotion, rights of employees, wages/salaries, statutory allowances and benefits,	• HR manual • Training records	Section 1.1, 2.1, 2.2, 2.9	Within 4 months	GWS Management

Key Areas	Key Corrective Actions	Measurable Outcomes	Reference in PS Table	Indicative Timelines	Implementation Role
	grievance handling, reporting and redressal, policy for security personnel Outline procedures for the same and communicate to all employees and workers.				
Ambernath Facility Level Recommendations					
Environmental Monitoring	• Ambient air and noise monitoring to be conducted at facility; • Submission of Environmental Statement to MPCB.	• Environmental monitoring report; • Environmental Statement	Section 1.3, 1.5, 3.1	Initially, Environmental monitoring within 3 months and later on frequency (quarterly/ half yearly/ yearly) to be decided on basis on initial results.; Submission of annual Environmental Statement to MPCB.	GWS management
Improvements in Labour and Working Conditions	• Improve the working conditions and housekeeping such drinking water facilities, space for storing worker's belongings, rest/ to have lunch etc. in accordance with the Maharashtra Factory Rules, 1963. • Communicate the	• Improved drinking water, sanitation facilities and designated space for storing worker's belongings. • A designated space for rest/ lunch with drinking water and sanitation facilities at the proposed new facility; • Improved housekeepin	Section 2.2, 2.3, 2.4, 2.8, 2.9	Improvement in labour conditions at existing facility within 2 months and subsequent regular monitoring; Designated space for workers in the new fabricating facility;	GWS Management

Key Areas	Key Corrective Actions	Measurable Outcomes	Reference in PS Table	Indicative Timelines	Implementation Role
	procedures of the Grievance redressal system outlined in the HR manual at the facility level.	g as per the Maharashtra Factory Rules, 1963. • Established grievance redressal system.			
Material Management	• Improve housekeeping in the storage area for raw materials and waste/ scraps etc.; • Display of hazardous nature and precautionary measures for sealant handling in local language in working area; • Sealant residue analysis to know the category of residue (hazardous or non hazardous), so that it is disposed off accordingly.	• Good housekeeping; • Display of hazardous nature and precautionary measures for sealant handling; • Sealant residue analysis;	Section 3.1, 3.4, 4.2	Within 1 month and regular inspection thereafter; Sealant residue analysis within 2 months	GWS Management; EHS manager
Community Health and Safety	• Ensure that contractors are aware and follows GWS vehicle traffic and safety	• Records for road safety trainings given to transporters .	Section 4.1	Within 2 months and regular monitoring thereafter.	GWS Management; Contractors

	guidelines				

Key Areas	Key Corrective Actions	Measurable Outcomes	Reference in PS Table	Indicative Timelines	Implementation Role
	as provided in safety manual to reduce risks and impacts during transportation of raw materials and finished products onsite as well as offsite.				
Installation Project Site Level Recommendations					
Improvements in Labour and Working Conditions	• At installation sites, where GWS has liberty to provide area for their workmen to rest and have food, ensure that the location is away from any stored materials and have sanitation facilities. • Improvement in sanitation facilities	• Separate space for workmen to rest and have food (if GWS is responsible for providing these facilities).	Section 2.3	During installation work at site.	GWS management

H&S Improvement	Specific work related risk assessment and associated control measures to minimize the severity of risk needs to be identified in a	• Risk assessment sheet duly signed by working team and site In charge;	Section 2.8	Prior to any work undertaken	EHS manager and Project Developer.
Key Areas	**Key Corrective Actions**	**Measurable Outcomes**	**Reference in PS Table**	**Indicative Timelines**	**Implementation Role**
	detailed and practical manner by applying hierarchy of/ combination of controls such as engineering control, administrative control etc.				

SCHEDULE 10

LIST OF SPECIFIC PROPERTIES

The Promoter Group shall have the right to purchase the following properties from the Company at such fair market value (to be determined by an independent valuer appointed by the Company with prior consent of the Investors) that shall be mutually acceptable to the Promoter Group and the Investors before completion of Strategic Sale:

- 503-504, 5th Floor, A Wing, Marathon Futurex, Mafatlal Mills Compound, N.M. Joshi Marg, Lower Parel (East), Mumbai.
- Industrial Plot with shed- A-102, Additional Ambernath Industrial Area, MIDC, Thane.
- Plot No. D - 120, Vile Bhagad Industrial Area, MIDC, Village Warchiwadi, Taluka Mangaon, Raigad.

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SCHEDULE 11

LIST OF ANCILLARY ENTITIES

Sr. No.	Name of the Companies/Firms	Nature of Interest	Details of Business Activities
1.	M. J. Coaters Private Limited*	Member & Director	All types of wet and dry coatings that include: • Powder Coating • PVDF Coating • Wood Finish • Coating Metalizing • Metal surface finishing of windows, doors and panels
2.	GWS Fabricators Private Limited	Member & Director	No Activity
3.	GWS Engineers & Fabricators Private Limited	Member & Director	All types of Fabrication of: • MS Brackets • GI Trays • Aluminium Trays • Aluminium Flashings • GI Flashings • MS Structures • Aluminium Structures • Project & factory Fabrication • All sorts of Sheet Metal Fabrication including that of Fire Doors, fire windows and MS support system fabrications for curtain Walls and Glasswall systems
4.	M. J. Aluminium Private Limited	Member & Director	No Activity
5.	Jaysons Chemicals and Gases Private Limited	Member & Director	No Activity
6.	Yes Façade Systems Private Limited	Member & Director	Manufacture, supply and installation of doors and windows
7.	Yes Systems Private Limited	Member & Director	Manufacture, supply and installation of doors and windows
8.	M. J. Enterprises	Partner	All types of wet and dry coatings and metal surface finishing, including that of Windows, doors and panels
9.	M. J. Infotech	Partner	Dealing in software and property rentals
10.	AE Infracon LLP	Designated Partner	No activity

SCHEDULE 12

RELATED PARTY TRANSACTIONS – EXISTING ACTIVITIES

Name of Related Party	Existing Related party Activities
GWS Engineers and Fabricators Private Limited	All types of Fabrication of: • MS Brackets • GI Trays • Aluminium Trays • Aluminium Flashings • GI Flashings • MS Structures • Aluminium Structures Project & factory Fabrication All sorts of Sheet Metal Fabrication
M. J. Coaters Private Limited	All types of wet and dry coatings that include: • Powder Coating • PVDF Coating • Wood Finish Coating Metalizing
Yes Systems Private Limited	Manufacture, supply and installation of doors and windows

IN WITNESS WHEREOF THE PARTIES HERETO HAVE SET AND SUBSCRIBED THEIR RESPECTIVE HANDS TO THESE PRESENTS ON THE DAY, MONTH AND YEAR HEREINABOVE WRITTEN:

For and on behalf of,

GLASSWALL SYSTEMS (INDIA) PRIVATE LIMITED

Name: Mr. Jawahar Hemrajani

Designation: Director

IN WITNESS WHEREOF THE PARTIES HERETO HAVE SET AND SUBSCRIBED THEIR RESPECTIVE HANDS TO THESE PRESENTS ON THE DAY, MONTH AND YEAR HEREINABOVE WRITTEN:

For and on behalf of,

INDIA BUSINESS EXCELLENCE FUND II

P.Bagla

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Name: Prakash Bagla

Designation: Managing Director

IN WITNESS WHEREOF THE PARTIES HERETO HAVE SET AND SUBSCRIBED THEIR RESPECTIVE HANDS TO THESE PRESENTS ON THE DAY, MONTH AND YEAR HEREINABOVE WRITTEN:

For and on behalf of,

INDIA BUSINESS EXCELLENCE FUND - IIA

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Name: Jihane Muhamodsaroar

Designation: Director

IN WITNESS WHEREOF THE PARTIES HERETO HAVE SET AND SUBSCRIBED THEIR RESPECTIVE HANDS TO THESE PRESENTS ON THE DAY, MONTH AND YEAR HEREINABOVE WRITTEN:

Hemrajani

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MR. JAWAHAR HEMRAJANI

IN WITNESS WHEREOF THE PARTIES HERETO HAVE SET AND SUBSCRIBED THEIR RESPECTIVE HANDS TO THESE PRESENTS ON THE DAY, MONTH AND YEAR HEREINABOVE WRITTEN:

For and on behalf of,

PROMOTER GROUP SHAREHOLDERS

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Name: Mr. Jawahar Hemrajani

Capacity: Constituted attorney, under power of attorney(s) dated 7th June, 2014